

Underwritten by
American Modern Fairmount Works
Fairmount Works



TALLGRASS WORKS
PO BOX 187
LIBERTY, NY 12754

December 6, 2024

PolicyHolder:
TALLGRASS WORKS
Policy Number:
103-184-239
Policy Type:
Motorsports

Dear TALLGRASS WORKS ,

Thank you for trusting American Modern Fairmount Works and for your insurance needs. We know you have options for your insurance. We e to allow us to meet your insurance needs by accepting this renewal offer. To accept this renewal offer simply make the initial policy payment.

If you have questions regarding this renewal offer or if you ha insurance needs, please contact PATRIOTIC INSURANCE GROUP BROKERAGE INC at (226) 783-0236 .

Thank you for the privilege of allowing us to protect you with this policy. It's a responsibility we take very seriously.

Sincerely,

Andreas Kleiner
President and CE
American Modern Fairmount Works

POLICY DECLARATIONS

American Modern Fairmount Works

Motorsports

Renewal



Premium Summary

Vehicle #1: 2009 SKI-DOO MXZ 600 ETEC X	\$0.00
Vehicle #2: 2015 SKI-DOO MXZ TNT 800	\$0.00
Vehicle #3: 2014 SKI-DOO MX Z SPORT	\$0.00
Vehicle #4: 2005 SKI-DOO GSX 600 SPORT	\$0.00
Policy Coverages	\$489.00
Tax and Fees	\$0.00
Total Policy Premium	\$489.00

Note: a minimum earned premium of \$50.00 applies to this policy.

Policy Discounts

Multi-Vehicle Discount

Dbboow Vnswtmn

103-184-239

Policy Period:

01/25/2025 to 01/25/2026 12:01 A.M. Standard Time

TALLGRASS WORKS
PO BOX 187
LIBERTY, NY 12754

Granite Row Works
GRANITE ROW
424 MERIDIAN
BOONVILLE, NY

- #495001

Your Agent:

PATRIOTIC INSURANCE GROUP BROKERAGE INC -
#913886

BOONVILLE, NY

Drivers

Listed Drivers:

RYAN QUEEN
MARGARET J QUEEN
KATHERINE QUEEN
ROBERT A QUEEN JR.

Accident / Violations:

Date:

Policy Coverages

Coverage	Limit / Description	Premium
Liability - Bodily Injury and Property Damage		\$366.00
Bodily injury	250,000 Per person	
Bodily injury	500,000 Each accident	
Property damage	100,000 Each accident	
Passenger Liability	Included	
Wrongful Death	50,000 Per person/100,000 Each accident	Included
Supplementary Uninsured / Underinsured Motorist	250,000 Per person/500,000 Each accident	\$123.00
Policy Level Coverages Premium		\$489.00

Important Information

The maximum amount payable under SUM coverage shall be the policy's SUM limits reduced and thus offset by motor vehicle bodily injury liability insurance policy or bond payments received from, or on behalf of, any negligent party involved in the accident, as specified in the SUM endorsement.

Policy Level Additional Costs

Description	Amount
Total Policy Level Additional Costs:	

Motorsports Policy Declaration

American Modern Fairmount Works

Policy Period: 01/

Policy Number: 103-184-239

Policy Type: Motorsports



Vehicle #1: 2009 SKI-DOO MXZ 600 ETEC X

Value:

6PAZAZ4P10Z042493	Engine Size: 594	Storage: Locked Garage/Building/Barn	Modified: No	Registered for Street Use: No
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TTNFEFU, BVCDTLQUENX PJDJ PM ET 83658

TTNFEFU, BVCDTLQUENX PJDJ PM ET 83658

M44 1

Coverage Detail

Coverage	Limit / Description	Premium
Comprehensive		\$0.00
Collision		\$0.00

Important Information

This unit does not contain Comprehensive coverage.

This unit does not contain Collision coverage.

Premium \$0.00

Discount Details

Description	Amount
Multi-Vehicle Discount	\$32.00

Vehicle #2: 2015 SKI-DOO MXZ TNT 800

Value:

5NAGVWZH1DE821356	Engine Size: 799	Storage: Locked Garage/Building/Barn	Modified: No	Registered for Street Use: No
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TTNFEFU, BVCDTLQUENX PJDJ PM ET 83658

TTNFEFU, BVCDTLQUENX PJDJ PM ET 83658

M44 1

Coverage Detail

Coverage	Limit / Description	Premium
Comprehensive		\$0.00
Collision		\$0.00

Important Information

This unit does not contain Comprehensive coverage.

This unit does not contain Collision coverage.

Premium \$0.00

Discount Details

Description	Amount
Multi-Vehicle Discount	\$119.00

Vehicle #3: 2014 SKI-DOO MX Z SPORT

Value:

8YYSWBQA8RE018584	Engine Size: 600	Storage: Locked Garage/Building/Barn	Modified: No	Registered for Street Use: No
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TTNFEFU, BVCDTLQUENX PJDJ PM ET 83658

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M44 1

Motorsports Policy Declaration

American Modern Fairmount Works

Policy Period: 01/

Policy Number: 103-184-239

Policy Type: Motorsports



Coverage Detail

Coverage	Limit / Description	Premium
Comprehensive		\$0.00
Collision		\$0.00
Important Information		

This unit does not contain Comprehensive coverage.

This unit does not contain Collision coverage.

Premium \$0.00

Discount Details

Description	Amount
Multi-Vehicle Discount	\$74.00

Vehicle #4: 2005 SKI-DOO GSX 600 SPORT

Value:

2ZJBGD8K13F032163	Engine Size: 593	Storage: Locked Garage/Building/Barn	Modified: No	Registered for Street Use: No
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TTNFEFU, BVCDTLQUENX PJDJ PM ET 83658

TTNFEFU, BVCDTLQUENX PJDJ PM ET 83658

M44 1

Coverage Detail

Coverage	Limit / Description	Premium
Comprehensive		\$0.00
Collision		\$0.00
Important Information		

This unit does not contain Comprehensive coverage.

This unit does not contain Collision coverage.

Premium \$0.00

Discount Details

Description	Amount
Multi-Vehicle Discount	\$40.00

Your Policy Documents

Your policy consists of this Policy Declaration and the documents in the following list. Please keep these together.

Policy Level Forms (Forms that apply to all Vehicles)

SM-NY-U-0001(03-20) - Explanation and Offer of Additional Coverage: Selection/Rejection of Supplementary Uninsured/Underinsured Motorists Coverage (New York)

PEF00(03-09) - Policy Execution Endorsement

VS031(03-20) - Snowmobile Policy - New York

VSW31(03-20) - Snowmobile Policy Supplementary Uninsured/Underinsured Motorist Endorsement - New York

IL-CW-G-0001(01-15) - Signature Endorsement

VSA31(03-20) - Snowmobile Policy Amendment of Policy Provisions - New York

Forms that apply to vehicle #1: 2009, SKI-DOO, MXZ 600 ETEC X, 6PAZAZ4P10Z042493

Forms that apply to vehicle #2: 2015, SKI-DOO, MXZ TNT 800, 5NAGVWZH1DE821356

Forms that apply to vehicle #3: 2014, SKI-DOO, MX Z SPORT, 8YYSWBQA8RE018584

Forms that apply to vehicle #4: 2005, SKI-DOO, GSX 600 SPORT, 2ZJBGD8K13F032163

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Policy Maintenance Information

It's easy to manage your policy online 24/7. You can make payments, file claims, view policy documents, and more. Go to amig.com to create an account or log in today!

**PLEASE REVIEW THE INFORMATION CONTAINED IN THIS POLICY.
IF ANY INFORMATION IS INCORRECT, PLEASE CONTACT:**

PATRIOTIC INSU

(226) 783-0236

ROKERAGE INC

Report a Claim: 1-800-375-2075

American Fairmount Automotive

S

PO Box 4258

Kingston, OH 12401-2468

Monroe

1235 Commerce

Monroe, OH 10950-7690

NEW YORK STATE INSURANCE IDENTIFICATION CARD

061 AMERICAN MODERN Fairmount Works

Name & Nudsabt km Fpsmoz

Fairmount Works

9584 COMMERCE LANE

PHONE: 1-800-543-2644

An authorized NEW YORK insurer has issued an Owner's Policy of liability Insurance complying with Article 6 (Motor Vehicle Financial Security Act) of the NEW YORK Vehicle and Traffic law to:

RTA,JR
PO BOX 187
LIBERTY, NY 12754

Policy Number
103184239

Effective Date
01/25/2025
12:01 a. m.

(Not acceptable to obtain registration after 45 days from effective date)
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Year

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01/25/2026
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SKI-D
Make

5NAGVWZH1DE821356

Vehicle Identification Number

THIS ID C
INSURED JANET DANFORTH
DEMAND

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FS-20

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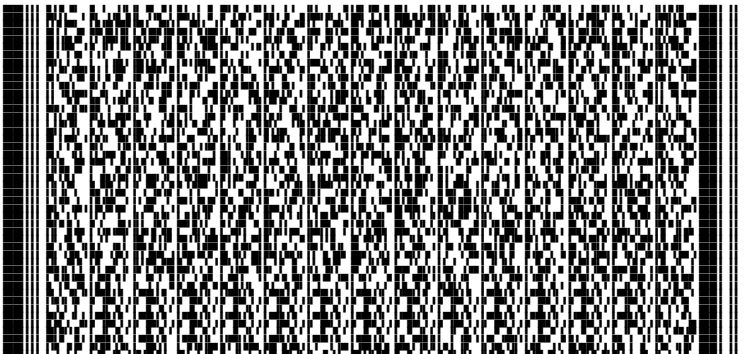
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Form IC-NY-I-0001 02-20

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1. NAME AND ADDRESS OF EACH DRIVER, PASSENGER, AND WITNESS.
2. BLUE FORK ENTERPRISES AND POLICY NUMBER FOR EACH VEHICLE INVOLVED.
3. NOTE THE DATE, TIME, AND LOCATION OF THE ACCIDENT.

FOR CLAIMS CALL: 1-800-375-2075

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Policy Number
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SKI-D
Make

2ZJBGD8K13F032163

Vehicle Identification Number

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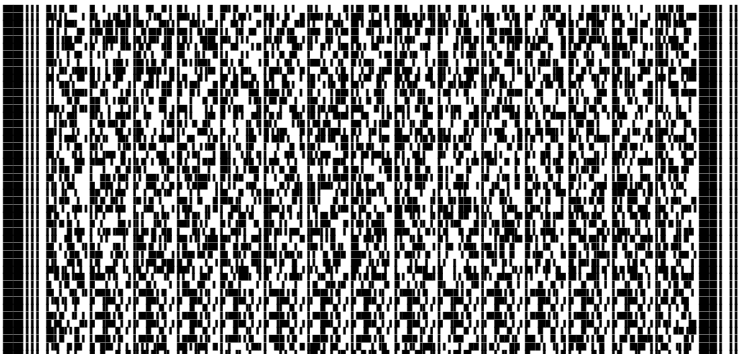
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Policy Number
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SKI-D
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8YYSWBQA8RE018584

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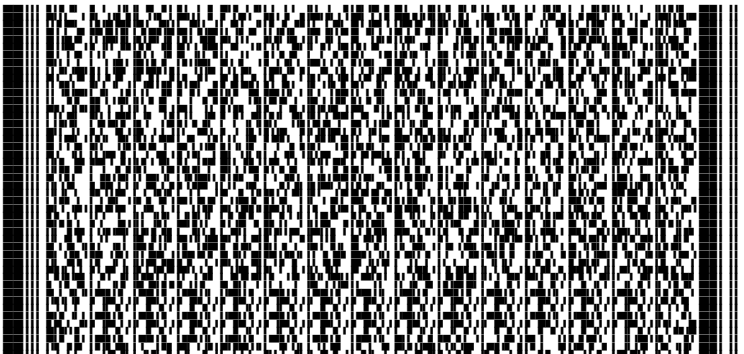
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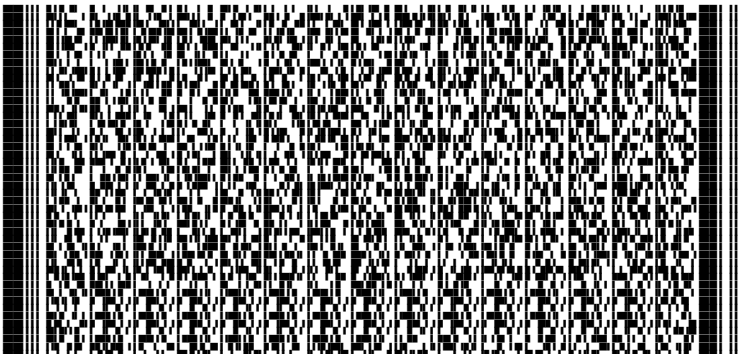
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IN CASE OF ACCIDENT:

REPORT ALL ACCIDENTS TO YOUR AGENT/COMPANY AS SOON AS POSSIBLE. OBTAIN THE FOLLOWING INFORMATION:

1. NAME AND ADDRESS OF EACH DRIVER, PASSENGER, AND WITNESS.
2. BLUE FORK ENTERPRISES AND POLICY NUMBER FOR EACH VEHICLE INVOLVED.
3. NOTE THE DATE, TIME, AND LOCATION OF THE ACCIDENT.

FOR CLAIMS CALL: 1-800-375-2075

Form IC-NY-I-0001 02-20

THIS ID CARD MUST BE CARRIED IN THE INSURED JANET DANFORTH

DEMAND

WARNING: Any person who issues or produces an ID card knowing that an Owner's Policy of insurance is not in effect may be committing a misdemeanor, in addition, a person who presents an ID card if insurance is not in effect may be committing a misdemeanor.

The name of the registrant and the name of the insured must coincide.

REPLACEMENT VEHICLE NOTATION: DMV WILL ONLY PROCESS A VEHICLE CHANGE (RE-REGISTRATION) USING THE REPLACED VEHICLE'S CURRENT REGISTRATION.

IN CASE OF ACCIDENT:

REPORT ALL ACCIDENTS TO YOUR AGENT/COMPANY AS SOON AS POSSIBLE. OBTAIN THE FOLLOWING INFORMATION:

1. NAME AND ADDRESS OF EACH DRIVER, PASSENGER, AND WITNESS.
2. BLUE FORK ENTERPRISES AND POLICY NUMBER FOR EACH VEHICLE INVOLVED.
3. NOTE THE DATE, TIME, AND LOCATION OF THE ACCIDENT.

FOR CLAIMS CALL: 1-800-375-2075



SNOWMOBILE POLICY - NEW YORK

AMERICAN MODERN Fairmount Works

CYHGAS, MB

MAIN ADMINISTRATIVE OFFICE

M

S

P.O. BOX 7131

WPSWNSWWCV, GHZT 29346-8107

READ YOUR POLICY CAREFULLY

For service information or questions concerning this policy,
contact **your** agent or call **our** executive office at
1-800-543-2644.

SNO
American Motors Fairmount Works
A Northvale Automotive
CYHGAS, MB

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AGREEMENT

In return for payment of the premium and subject to all the terms of this policy, **we** agree with **you** as follows:

DEFINITIONS

A. Throughout this policy, **you** and **your** refer to:

1. The named insured WINSLOW in the Declarations; and
2. The spouse if a resident of the same household.

B. **We**, **us** and **our** refer to the Company providing this insurance.

Other words and phrases are defined. They are in bold when used.

C. **Bodily injury** means bodily harm, sickness or disease, including death that results.

D. **Business** includes trade, profession or occupation.

E. **Family member** means a person, related to **you** by blood, marriage or adoption, who is a resident of **your** household. This includes a ward or foster child.

F. **Occupying** means in or upon, mounting, entering or alighting from **your covered snowmobile**.

G. **Property damage** means physical injury to, destruction of or loss of use of tangible property.

H. **Snowmobile** means:

A land motor vehicle which is:

1. Designed for use mainly off public roads on snow or ice; and
2. Propelled solely by means of the following or similar mechanical devices:
 - a. Wheels;
 - b. Crawler-type treads; or
 - c. Belts.

However, **snowmobile** does not include any vehicle that is propelled by airplane type propellers or fans.

I. **Your covered snowmobile** means:

1. Any **snowmobile** WINSLOW in the Declarations.
2. Any **snowmobile** on the date **you** become the owner. This provision applies only if **you**:
 - a. Acquire the **snowmobile** during the policy period; and
 - b. **You** ask **us** to insure it within 30 days after **you** become the owner.
3. Any **snowmobile** that **you** do not own while used as a temporary substitute for any other **snowmobile** described in this definition which is out of normal use because of its:
 - a. Breakdown;
 - b. Repair;
 - c. Servicing;
 - d. Loss; or
 - e. Destruction.

PART A - LIABILITY COVERAGE

INSURING AGREEMENT

A. **We** will pay for damages for **bodily injury** or

WINSLOW INDUSTRIES WINSLOW INDUSTRIES
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Damages include pr
against the insured. NORTHVALE ENTERPRISES
we consider appr
asking for these damages. In addition to **our**
limit of liability, **we** will pay all defense costs
we incur. **Our** duty to settle or defend ends
when **our** limit of liability for this coverage has
been exhausted. **We** have no duty to defend
any suit or settle any claim for **bodily injury** or
property damage not covered under this policy.

B. Insured as used in this part means:

1. **You** or any **family member** for the ownership, maintenance or use of **your covered snowmobile**.
2. Any person using **your covered snowmobile**.

3. For **your covered snowmobile**, any person or organization but only with respect to legal responsibility for acts or omissions of a person for whom coverage is afforded under this part.

SUPPLEMENTARY PAYMENTS

In addition to **our** limit of liability, **we** will pay on behalf of an insured:

1. Up to \$250 for the cost of bail bonds required because of an accident, including related traffic law violations. The accident must result in **bodily injury** or **property damage** covered under this policy.
2. Premiums on appeal bonds and bonds to release attachments in any suit **we** defend.
3. Interest accruing after a judgment is entered in any suit **we** defend. **Our** duty to pay interest ends when **we** offer to pay that part of the judgment that does not exceed **our** limit of liability for this coverage.
4. Up to \$50 a day for loss of earnings, but not other income, because of attendance at hearings or trials at **our** request.
5. Other reasonable expenses incurred at **our** request.

EXCLUSIONS

A. We do not provide Liability Coverage for any person:

1. Who intentionally causes **bodily injury** or **property damage**.
2. For **property damage** to property owned or being transported by that person.
3. For **property damage** to property:
 - a. Rented to;
 - b. Used by; or
 - c. In the care of;

That person.

This exclusion **(A.3.)** does not apply to damage to a residence or private garage.

4. For **bodily injury** to an employee of that person during the course of employment. This exclusion **(A.4.)** does not apply to **bodily**

injury to a domestic employee unless workers' compensation benefits are required or available for that domestic employee.

5. For that person's liability arising out of the ownership or operation of a **snowmobile** while it is being used as a public or livery conveyance.
6. Maintaining or using a **snowmobile** in any **business**.
7. Using a **snowmobile** without a reasonable belief that the person is entitled to do so.
8. For **bodily injury** or **property damage** for which that person:
 - a. Is an insured under a nuclear energy liability policy; or
 - b. Would be an insured under a nuclear energy liability policy but for its termination upon exhaustion of its limit of liability.

A nuclear energy liability policy is a policy issued by any of the following or their successors:

- a. American Nuclear Insurers;
- b. Mutual Atomic Energy Liability Underwriters; or
- c. Nuclear Insurance Association of Canada.

B. We do not provide Liability Coverage for the ownership, maintenance or use of:

1. **Your covered snowmobile** while rented or leased to any organization, or any person.
2. Any vehicle, other than **your covered snowmobile**.
3. Any **snowmobile**:
 - a. Operated in; and
 - b. While in practice or preparation for;

Any racing or speed contest regardless of whether such contest is pre-arranged or organized.

4. Any vehicle used to transport a **snowmobile**.

C. We do not provide Liability Coverage for punitive or exemplary damage. This provision controls over any other provision of the policy.

LIMIT OF LIABILITY

A. The limit of liability shown in the Declarations for each person for **Bodily Injury** Liability is **our** maximum limit of liability for all damages, including damages for care, loss of services or death, arising out of **bodily injury** sustained by any one person in any one **snowmobile** accident. Subject to this limit for each person, the limit of liability shown in the Declarations for each accident for **Bodily Injury** Liability is **our** maximum limit of liability for all damages for **bodily injury** resulting from any one **snowmobile** accident. The limit of liability shown in the Declarations for each accident for **Property Damage** Liability is **our** maximum limit of liability for all **property damage** resulting from any one **snowmobile** accident. This is the most **we** will pay regardless of the number of:

1. Insureds;
2. Claims made;
3. **Snowmobiles** or premiums shown in the Declarations; or
4. Vehicles involved in the **snowmobile** accident.

B. **We** will apply the limit of liability to provide any separate limits required by law for **bodily injury** and **property damage** liability. However, this provision **(B.)** will not change **our** total limit of liability.

OUT OF STATE COVERAGE

If a **snowmobile** accident to which this policy applies occurs in any state or province other than the one which **your covered snowmobile** is principally garaged, **we** will interpret **your** policy for that accident as follows:

A. If the state or province has:

1. A financial responsibility or similar law specifying limits of liability for **bodily injury** or **property damage** applicable to **snowmobiles** that are higher than the limit shown in the Declarations, **your** policy will provide the higher specified limit.
2. A compulsory insurance or similar law requiring a nonresident to maintain insurance whenever the nonresident uses a **snowmobile** in that state or province, **your** policy will provide at least the required minimum amounts and types of coverage.

B. No one will be entitled to duplicate payments for the same elements of loss.

FINANCIAL RESPONSIBILITY REQUIRED

When this policy is certified as future proof of financial responsibility, this policy shall comply with the law to the extent required.

OTHER INSURANCE

Any insurance **we** provide shall be excess over any other collectible insurance.

PART B - COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE

INSURING AGREEMENT

A. **We** will pay for direct and accidental loss to **your covered snowmobile** or **trailer**, including its equipment, minus any applicable deductible shown in the Declarations. **We** will pay for loss to **your covered snowmobile** or **trailer** caused by:

1. **Comprehensive** which is defined as other than **collision** only if the Declarations indicate that **Comprehensive** Coverage is provided for that **snowmobile** or **trailer**.
2. **Collision** only if the Declarations indicate that **Collision** Coverage is provided for that **snowmobile** or **trailer**.

B. **Collision** means the upset of **your covered snowmobile** or **trailer** or its impact with another vehicle or object.

Loss caused by the following is considered **comprehensive**:

1. Missiles or falling objects;
2. Fire;
3. Theft or larceny;
4. Explosion or earthquake;
5. Windstorm;
6. Hail, water or flood;
7. Malicious mischief or vandalism;
8. Riot or civil commotion;
9. Contact with bird or animal; or
10. Breakage of glass.

If breakage of glass is caused by a **collision**, you may elect to have it considered a loss caused by **collision**.

C. Trailer as used in this part means:

1. A non-powered vehicle designed and used for transporting **your covered snowmobile**.

TOWING AND EMERGENCY EXPENSE

In addition, as a result of a loss covered under this Part, **we** will pay up to \$100 for towing and emergency expense each time **your covered snowmobile** is disabled. The emergency labor must be performed at the place of disablement.

EXCLUSIONS

We will not pay for:

1. Loss to **your covered snowmobile** that occurs while it is used as a public or livery conveyance.
2. Damage due and confined to:
 - a. Wear and tear;
 - b. Freezing;
 - c. Mechanical or electrical breakdown or failure; or
 - d. Road or **trailer** damage to tires, wheels, crawler-type treads or belts.

This exclusion (2.) does not apply if the damage results from the total theft of **your covered snowmobile**.

3. Loss due to or as a consequence of:
 - a. Radioactive contamination;
 - b. Discharge of any nuclear weapon (even if accidental);
 - c. War (declared or undeclared);
 - d. Civil war;
 - e. Insurrection; or
 - f. Rebellion or revolution.
4. Loss to a **trailer you** own which is not shown in the Declarations.
5. Loss to any vehicle used as a temporary substitute for a **snowmobile you** own which

is out of normal use.

6. Loss to **your covered snowmobile** caused intentionally by or at the direction of **you** or any **family member**.
7. Loss to any **snowmobile** while rented or leased to any person or organization.
8. Loss to the **snowmobile** due to fraudulent acquisition by any person or organization which occurs while the **snowmobile** is:
 - a. Rented to;
 - b. Used by; or
 - c. In the care of;That person or organization.
9. Loss to any **snowmobile**:
 - a. Operated in; or
 - b. While in practice or preparation for;Any racing or speed contest regardless of whether such contest is prearranged or organized.
10. Loss to **your covered snowmobile** or **trailer** due to destruction or confiscation by governmental or civil authorities because **you** or any **family member**:
 - a. Engaged in illegal activities; or
 - b.

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LIMIT OF LIABILITY

- A. Our limit of liability for loss will be the lesser of the:
 1. Stated amount shown in the Declarations.
 2. Actual cash value of the stolen or damaged property; or
 3. Amount necessary to repair or replace the property.
- B. An adjustment for depreciation and physical condition will be made in determining actual cash value at the time of loss.

PAYMENT OF LOSS

We will pay for loss in money or repair or replace the damaged or stolen property. **We** may, at **our** expense, return any stolen property to:

1. **You**; or
2. The address shown in this policy.

If **we** return stolen property, **we** will pay for any damage resulting from the theft. **We** may keep all or part of the property at an agreed or appraised value.

NO BENEFIT TO BAILEE

This insurance shall not directly or indirectly benefit any carrier or other bailee for hire.

OTHER INSURANCE

If other insurance also covers the loss, **we** will pay only **our** share of the loss. **Our** share is the proportion that **our** limit of liability bears to the total of all applicable limits.

APPRAISAL

A. If **you** and **we** do not agree on the amount of loss, either may demand an appraisal of the loss. In this event, each party will select a competent appraiser. The two appraisers will state separately the actual cash value and the amount of loss. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

1. Pay its chosen appraiser; and
2. Bear the expenses of the appraisal and umpire equally.

B. **We** do not waive any of **our** rights under this policy by agreeing to an appraisal.

PART C - DUTIES AFTER AN ACCIDENT OR LOSS

We have no duty to provide coverage under this policy unless there has been full compliance with the following duties:

- A.** **We** must be notified promptly of how, when and where the accident or loss happened. Notice should also include the names and addresses of any injured persons and of any witnesses.
- B.** A person seeking any coverage must:

1. Cooperate with **us** in the investigation, settlement or defense of any claim or suit.

2. Promptly send **us** copies of any notices or legal papers received in connection with the accident or loss.

3. Submit, as often as **we** reasonably require:

- a. To physical exams by physicians **we** select. **We** will pay for these exams.
- b. To examination under oath and subscribe the same.

4. Authorize **us** to obtain:

- a. Medical records; and
- b. Other pertinent records.

5. Submit a proof of loss when required by **us**.

C. A person seeking Uninsured Motorists Coverage must also:

1. Promptly notify the police if a hit-and-run driver is involved.
2. Promptly send **us** copies of the legal papers if a suit is brought.

D. A person seeking **COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE** must also:

1. Take reasonable steps after loss to protect **your covered snowmobile** and its equipment from further loss. **We** will pay reasonable expenses incurred to do this.
2. Promptly notify the police if **your covered snowmobile** is stolen.
3. Permit **us** to inspect and appraise the damaged property before its repair or disposal.

PART D - GENERAL PROVISIONS

BANKRUPTCY

Bankruptcy or insolvency of the insured shall not relieve **us** of any obligations under this policy.

CHANGES

A. This policy contains all the agreements between **you** and **us**. Its terms may not be changed or waived except by endorsement issued by **us**.

B. If there is a change to the information used to develop the policy premium, **we** may adjust **your** premium. Changes during the policy term that may result in a premium increase or decrease include, but are not limited to, changes in:

1. The number use classification of insured BLUE FORK
2. Operators using insured BLUE FORK
3. BLUE FORK principal garaging of insured or
4. Coverage, deductibles or limits.

C. If a change resulting from **A.** or **B.** requires a premium adjustment, **we** will make the premium adjustment in accordance with **our** manual rates.

D. If **we** make a change which broadens coverage under this edition of **your** policy without additional premium charge, that change will apply to **your** policy as of the date **we** implement the change in **your** state. This paragraph (**D.**) does not apply to changes implemented with a general program revision that includes both broadenings and restrictions in coverage, whether that general program revision is implemented through introduction of:

1. A subsequent edition of **your** policy; or
2. An Amendatory Endorsement.

FRAUD

We do not provide coverage for any insured who has made fraudulent statements or engaged in fraudulent conduct in connection with any accident or loss for which coverage is sought under this policy.

LEGAL ACTION AGAINST US

A. No legal action may be brought against **us** until there has been full compliance with all the terms of this policy. In addition, under Part **A**, no legal action may be brought against **us** until:

1. **We** agree in writing that the insured has an obligation to pay; or
2. The amount of that obligation has been finally determined by judgment after trial.

B. No person or organization has any right under this policy to bring **us** into any action to determine the liability of an insured.

OUR RIGHT TO RECOVER PAYMENT

A. If **we** make a payment under this policy and the person to or for whom payment was made has a right to recover damages from another, **we** shall be subrogated to that right. That person shall do:

1. Whatever is necessary to enable **us** to exercise **our** rights; and
2. Nothing after loss to prejudice them.

However, **our** rights in this paragraph (**A.**) do not apply under Part **B**, against any person using **your covered snowmobile** with a reasonable belief that that person is entitled to do so.

B. If **we** make a payment under this policy, and the person to or for whom payment is made recovers damages from another, that person shall:

1. Hold in trust for **us** the proceeds of the recovery; and
2. Reimburse **us** to the extent of **our** payment.

POLICY PERIOD AND TERRITORY

A. This policy applies only to accidents and losses which occur:

1. During the policy period as shown in the Declarations; and
2. Within the policy territory.

B. The Liability, Uninsured Motorists and **Collision** Coverages are suspended and do not apply during the six (6) month period of April 15 through October 15, except during those times when **your covered snowmobile** is operated on snow or ice.

However, this Provision (**B**) will apply only if the words "lay up" are printed on the policy Declarations.

C. The policy territory is:

1. The United States of America, its territories or possessions; or
2. Canada.

TERMINATION

A. Cancellation. This policy may be cancelled during the policy period as follows:

1. The named insured shown in the Declarations may cancel by:

- a. Returning this policy to **us**; or
- b. Giving **us** advance written notice of the date cancellation is to take effect.

2. We may mail notice to the insured's address

FAIRMOUNT SERVICE GROUP

- a. At least 10 days notice:
 - (1) If cancellation is for nonpayment of premium; or
 - (2) If notice is mailed during the first 60 days this policy is in effect and this is not a renewal or continuation policy; or
- b. At least 20 days notice in all other cases.

B. Nonrenewal. If **we** decide not to renew or continue this policy, **we** will mail notice to the named insured at the address shown on the policy. If **we** do not mail notice to the named insured, the policy will terminate at the end of the policy period.

C. Automatic Termination. If **we** offer to renew or continue and neither **you** nor **your** representative accepts, this policy will automatically terminate at the end of the current policy period. Failure to pay the required renewal or continuation premium when due shall mean that **you** have not accepted **our** offer.

If **you** obtain other insurance on **your covered snowmobile** any similar insurance provided by this policy will terminate as to that **snowmobile** on the effective date of the other insurance.

D. Other Termination Provisions.

- 1. If the law in effect in **your** state at the time this policy issued, renewed or continued:
 - a. Requires a longer notice period;
 - b. Requires a special form of or procedure for giving notice; or
 - c. Modifies any of the stated termination reasons;

We will comply with those requirements.

- 2. **We** may deliver any notice instead of mailing it. Proof of mailing of any notice shall be sufficient proof of notice.

3. If this policy is cancelled, **you** may be entitled to a premium refund. If so, **we** will send **you** the refund. The premium refund, if any, will be computed according to **our** manuals. However, making or offering to make the refund is not a condition of cancellation.

4. The effective date of cancellation stated in the notice shall become the end of the policy period.

TRANSFER OF YOUR INTEREST IN THIS POLICY

A. Your rights and duties under this policy may not be assigned without **our** written consent. However, if a named insured shown in the Declarations dies, coverage will be provided for:

- 1. The surviving spouse if resident in the same household at the time of death. Coverage applies to the spouse as if a named insured shown in the Declarations; and
- 2. The legal representative of the deceased person as if a named insured shown in the Declarations. This applies only with respect to the representative's legal responsibility to maintain or use **your covered snowmobile**.

B. Coverage will only be provided until the end of the policy period.

TWO OR MORE POLICIES

If this policy and any other insurance policy issued to **you** by **us** apply to the same accident, the maximum limit of **our** liability under all the policies shall not exceed the highest applicable limit of liability under any one policy.

NONASSESSABLE POLICY

This policy is nonassessable. **You** are not subject to contingent liability, nor liable to assessment.

IMPORTANT NOTICE BILLING REFERENCE INFORMATION

Payment Services

- Online at amig.com
- Automated Cu
- Agents Office: (525) 368-4749
- Company Addr

d Direct Customer Care: **1-800-543-2644**

Standard Mailing:

PO BOX 1127
Fairmount Works
5274-0167

Overnight Mailing:

530 Station Drive
27
Attn: 1MOC1N - Rlbx 740167

Installment Payment Plan Options

- Payment plan options are flexible, and vary by product. Your agent can advise which are available for your account.
- Electronic Funds Transfer (EFT) is available for automatic withdrawals from your checking or savings account or credit card. You may choose your payment withdrawal day of the month, selections are day 1 through 28.

How You Pay

- Electronic (one time) payments can be made from a checking or savings account, debit card, and the following credit cards: Visa, MasterCard, Discover and American Express.
- Paper payments can be made by check or money orders, using one of the above addresses.
- Payments can be made online Monday through Friday from 7:00am to 12:00am EST, and Saturday and Sunday from 8:00am to 9:00pm EST.

Charges

- **Service Charge** of \$7.00 applies for each installment, except for annual payment plans.
- **Late Charge** of \$15.00 may be assessed, if payment is received after due date and a notice of cancellation is generated.
- **Reinstatement Charge** of \$25.00 will be assessed if the company elects to rewrite or reinstate your policy when the amount due is paid after the cancellation date.
 - Reinstatement is not guaranteed and may or may not include a gap in coverage.
- **Non Sufficient Funds (NSF) Charge** of \$20.00 will be assessed for any payments returned from the issuing bank due to unavailable funds.

IMPORTANT NOTICE TO SENIOR CITIZENS THIRD PARTY NOTIFICATION - NEW YORK

If you are a named insured and age 65 or older, New York law permits you to designate a third party to whom we will send a duplicate copy of any cancellation or nonrenewal notice issued to you for your personal insurance policies.

If you are interested in designating someone to receive such duplicate notices, you should discuss this with them and obtain their approval. Complete the lower portion of this form by:

1. Entering the third party's name and address;
2. Signing and dating this form;
3. Having the third party sign and date it; and
4. Returning it certified mail, return receipt requested, to:

ATTENTION: CEDARLINE BUILDERS

HERKIMER, OH 13350-7794

Keep a copy of the completed form for your records. The third party designation will become effective no later than ten (10) business days after we receive the completed form signed by both you and the third party designee. You may terminate the third party designation by sending written notification by certified mail, return receipt requested, to the designated third party and us.

Request To Designate A Third Party To Receive A Copy Of Policy Termination Notices

Insured's Name: TALLGRASS WORKS _____ Policy Number: 103-184-239
Address: PO BOX 187 _____
LIBERTY, NY 12754 _____
Che _____ :
Boonville _____
Medina _____

I designate the following person to receive a duplicate copy of any cancellation or nonrenewal notice that you might send me for the policy number shown above.

Name: _____
Street: _____
City: _____ State: _____ Zip: _____

Signature of Insured Date

I accept the designation above. I understand my designation as a third party shall not constitute acceptance of any liability on my part or the insurer for services provided to the senior citizen insured. If I decide to terminate my designation, I must send written notification by certified mail, return receipt requested, to both the insured and the insurer.

Signature of Third Party Designee Date

IMPORTANT NOTICE SUPPLEMENTAL SPOUSAL LIABILITY COVERAGE - NEW YORK

New York State law requires an insurer issuing or delivering a Policy that satisfies the requirements of New York Vehicle and Traffic Law article 6 to provide supplemental spousal liability insurance, unless a named insured elects, in writing, to decline and refuse such insurance in the Policy.

Supplemental spousal liability insurance provides bodily injury liability coverage under a motor vehicle insurance Policy when a person is injured or killed in a motor vehicle accident caused by the negligence of the person's spouse.

This coverage is included within the Policy's bodily injury liability limits and does not increase the amount of those limits. For example:

Insured's bodily injury Policy coverage limit: \$100,000 / \$300,000

InsuredASHCROFT MECHANICAL

CLEARWATER CONTRACTING

available to all other claimants, subject to a

This example assumes the spouse and other claimants involved in the accident have a right to sue the insured for economic loss or for non-economic loss (i.e., pain and suffering) sustained as a result of a "serious injury" as defined in Insurance Law Section 5102(d). It must also have been shown that there was negligence on the part of the insured.

If you decline this coverage, then the injured or deceased spouse would not be covered under the bodily injury liability coverage in the Policy.

The additional premium for supplemental spousal liability insurance is 5% of the charged Bodily Injury Liability premium shown on your Declarations Page of this Policy. If you do not decline or have not previously declined this coverage in writing, supplemental spousal liability insurance coverage is automatically included in your motor vehicle insurance Policy. If supplemental spousal liability insurance is not declined in writing, failure to pay the supplemental spousal liability insurance premium may result in the issuance of a Policy cancellation notice for nonpayment of premium.

No coverage is provided by this notice, nor can it be construed to replace any provision of your Policy. You should read your Policy and review the Declarations Page for complete information on the coverages you are provided. If there is a conflict between the Policy and this notice, **THE PROVISIONS OF YOUR POLICY SHALL PREVAIL. PLEASE READ YOUR POLICY CAREFULLY.**

**RENTAL VEHICLE COVERAGE
NOTICE TO POLICYHOLDERS - NEW YORK**

****Rental Vehicle Coverage Premium Charge YES: _____ NO: X**

****If YES, Amount of Rental Vehicle Coverage Premium: _____**

The Rental Vehicle Coverage endorsement to this policy provides protection in the event of damage to, or loss of, a rental vehicle, including loss of use, as described in the endorsement.

Rental Vehicle Coverage is mandated by New York State law to reduce problems that confront consumers and leave them vulnerable to major unanticipated costs when dealing with rental vehicle companies.

This Rental Vehicle Coverage protects you whenever rental vehicles are rented and operated anywhere within the United States, its territories or possessions, and Canada.

In the event that a premium is at any time charged or increased for Rental Vehicle Coverage, you have the right to reject this coverage and not pay such charge, if you so inform your insurer within ten calendar days after you receive notice that such a premium charge or increase will be made for Rental Vehicle Coverage.

Please review the Rental Vehicle Coverage endorsement itself. If, as indicated at the top of this notice, there is a premium charge or increase and you wish to reject Rental Vehicle Coverage — or you simply wish to obtain additional information regarding this coverage — please contact your insurance agent or broker, or call our toll-free telephone number: 800-543-2644.

IMPORTANT INSURANCE INFORMATION FOR POLICYHOLDERS - NEW YORK

- (1) Financial security (insurance) shall be maintained without interruption during the entire registration period regardless of whether the vehicle is driven.
- (2) License plates must be surrendered before insurance is cancelled or suspended without exception. This is compliance with New York State law. Surrendering license plates before cancellation of insurance will prevent communications from DMV based on cancellation that insurers are required by law report to DMV.
- (3) Policyholders moving from New York State must coordinate the surrender of New York State license plates and cancellation of a New York State insurance policy with obtaining a new registration and insurance policy in another state. Again, this will prevent DMV communications based on cancellation reported by insurers.
- (4) Insurers must provide policyholders with at least two identical ID cards for each vehicle insured. ID cards represent that insurance is provided for the named insured and the described vehicle, as applicable, as of the effective date shown thereon.
- (5) Encrypted 2D bar codes on ID cards contain tamper proof security features that prevent ID card fraud. The bar code contains information about the policy, effective dates of coverage and issuance date, registrant name and address, vehicle description (as applicable) and the issuer of the ID card.
- (6) Some insurers and agents are using software that allows ID cards to be either e-mailed or faxed. Successful faxing requires equipment in good working order both sending and receiving. Faxed ID cards are only acceptable if the ID card contains a large faxable bar code that scans (is readable).
- (7) Policyholders should check to be sure that the name and the vehicle identification number (VIN) on all ID cards are identical to the name and VIN on all the registrations. Policyholders should immediately notify their agent and/or insurer of any discrepancies. Agents and/or insurer must issue corrected ID card and change policy records accordingly.
- (8) Policyholders must keep one ID card in the vehicle at all times.
- (9) An ID card must, upon demand, be shown to a law enforcement officer, judge, hearing officer or any person with whom the insured or other driver may have had an accident. In the event of an accident, the insured or driver can also demand to see the other driver's ID card.
- (10) The failure to produce an ID card at the request of a law enforcement officer is presumptive evidence of uninsured operation for which the driver may be given a ticket. An ID card must be produced upon demand by any driver of a vehicle; not just the registrant.
- (11) If the second ID card is not currently required for registration purposes it should be kept in a safe place since it may be required to be submitted to DMV as proof of insurance in the future.
- (12) Upon loss of an ID card the insured shall contact the Granite Row , agent or broker, not DMV.
- (13) An ID card is only as good as the policy that it represents. If for any reason the insurance policy is terminated, then the ID cards issued in conjunction with such policy are void. Any use of such invalid ID cards may be a violation of law.
- (14) Failure to maintain liability insurance coverage continuously throughout the registration period even if the vehicle is not in use may result in the suspension of the registration and driving privileges. Registrants if eligible may opt to pay a civil penalty for each day that a vehicle was registered and uninsured one time in a three-year period if the lapse in coverage does

not exceed 90 days. A 20-day revocation may be imposed on for hire vehicles such as taxis, liveries, buses, rentals and so forth.

- (15) Driving without insurance, a valid registration or driver's license is subject to severe sanctions under the law. A driver may be arrested and incarcerated and the vehicle impounded. Such driver is subject to fines and surcharges in a court of law. In cases of uninsured operation DMV will impose mandatory revocation of registration and driver's license as well as a substantial civil penalty.
- (16) Fraudulent issuance or use of an ID card as proof of a non-existent policy is punishable as a misdemeanor under New York State law.

IMPORTANT NOTICE - DRIVING WHILE IMPAIRED - NEW YORK

TO ALL OPERATORS OF MOTOR VEHICLES IN NEW YORK STATE

As your Granite Row, we are required by law to advise you of the legal and financial consequences of operating a motor vehicle while under the influence of alcohol or drugs. We strongly endorse the message conveyed by the law -- that it does not pay to drink and drive.

Alcohol or drug impairment is a major problem involving not only the impaired driver, but other innocent drivers and pedestrians. We are constantly reminded of the serious consequences of drinking and driving, yet property damage, injuries and deaths caused by alcohol or drug-impaired driving continue to be a major problem. In fact, studies (such as those published in "Fatality Facts 2010" by the Insurance Institute for Highway Safety - Highway Loss Data Institute) show that alcohol or drug use is a contributing factor in a significant number of all fatal motor vehicle accidents, as shown in the following table.

Percent of Fatally Injured Passenger Vehicle Drivers (with BAC $\geq$.08%)

Overall	33%
Nighttime (9 p.m. - 6 a.m.)	59%
Weekends (6 p.m. Friday - 6 a.m. Monday)	45%
Weekdays	25%
Nighttime single-vehicle crashes	68%

In recent years New York State has made significant changes to strengthen its driving while intoxicated laws, and these changes have extremely serious consequences for motorists who choose to drive while intoxicated or impaired by alcohol or drugs. A new crime of aggravated driving while intoxicated ("Agg DWI") was created, which prohibits: driving a motor vehicle while having a blood alcohol content ("BAC") of .18 % or more; or committing most driving under the influence of alcohol or drugs offenses while a child who is 15-years-old or younger is a passenger. In addition, a new crime of driving while ability impaired by the combined influence of drugs or of alcohol and any drug or drugs ("DWAI Combined Influence") was created.

The law generally prohibits "plea bargaining" to a non-alcohol/drug-related driving offense. Moreover, every motorist who is convicted of driving while intoxicated ("DWI") or Agg DWI must be sentenced to probation or conditional discharge (in addition to any fines or imprisonment) and in connection with that sentence, must install at the motorist's own expense an ignition interlock device ("IID") in all vehicles that the motorist owns or operates (with the exception of certain employer-owned vehicles) for at least six months. In addition to the criminal penalties associated with driving under the influence of alcohol or drugs convictions, such convictions also carry with them substantial driver's license suspension or revocation periods. Motorists who are convicted of any alcohol or drug related driving offense (even if it is a traffic infraction as opposed to a crime) must pay a \$750 driver responsibility assessment ("DRA") in addition to fines, mandatory surcharges, and other related fees and penalties.

In addition to facing prosecution for the various alcohol and drug-related driving offenses defined in the Vehicle and Traffic Law ("VTL"), motorists who injure or kill others while driving under the influence of alcohol or drugs may be charged with committing crimes under the Penal Law. New laws have increased the penalties for vehicular assault and vehicular manslaughter, and new crimes of aggravated vehicular assault and aggravated vehicular homicide have been created as part of New York's continuing efforts to punish intoxicated and impaired drivers who injure or kill others.

This notice provides general information on the penalties for convictions of operating a motor vehicle while under the influence of alcohol or drugs. Be aware that stiffer penalties are levied in certain situations involving a motorist who holds a commercial driver's license ("CDL") or for convictions of such impairment while operating a commercial vehicle, especially when transporting certain hazardous materials.

Please familiarize yourself, and anyone else who operates your vehicle, with this important information. Please remember: **If you drink, don't drive!**

BASIC PENALTIES, DEGREE OF IMPAIRMENT AND INSURANCE PENALTIES

If you are convicted of an alcohol or drug related driving offense defined in the VTL, then there are extremely serious consequences. Some of the consequences are criminal or penal in nature, while others are civil or administrative in nature.

The criminal consequences may include all or some of the following: court imposed fines and surcharges, a sentence of probation or conditional discharge with a condition that you install and maintain an IID in all vehicles you own or operate, and imprisonment.

If you cause a death or serious injury as a result of a traffic accident while intoxicated or impaired by alcohol or drugs, then you may face additional criminal charges under the Penal Law for vehicular assault, aggravated vehicular assault, vehicular manslaughter, and aggravated vehicular homicide, punishable by up to 15-25 years in prison.

The civil or administrative consequences will include fines, mandatory surcharges and related fees levied by the Department of Motor Vehicles ("DMV"), and the suspension or revocation of your driver's license by DMV. You also will be charged a \$750 DRA payable in three annual payments of \$250, in addition to any fines and mandatory surcharges and related fees that are imposed. If you fail to make a required DRA payment, then your license will be suspended indefinitely until the amounts owing are paid.

If you are convicted of an alcohol or drug related driving offense in New York State, then depending on the severity of the offense or if you had prior offenses, your license will be suspended for 90 days at a minimum or revoked for a minimum of six to 18 months.

If you are convicted of an alcohol or drug related driving offense inside or outside of New York State that you committed when you were under the age of 21, then the license consequences are generally more severe: if it is a first offense, then your license will be revoked for at least one year and if it is a second or subsequent offense, then your license will be revoked for at least one year (18 months for Agg-DWI offense in NYS) or until you become 21, whichever is **longer**.

If you are age 21 or older and you are convicted of an out-of-state alcohol-related driving offense, then in addition to the penalties imposed by the state where the offense occurred, your New York driver's license will be revoked for at least 90 days; if the out-of-state offense is a drug-related driving offense, then your driver's license will be revoked for at least six months.

If you are the holder of a CDL and you commit an alcohol or drug-related driving offense (regardless of whether you were driving an automobile or a commercial vehicle at the time of the offense), then your CDL will be revoked for at least one year. A motorist holding a CDL who commits two such violations will have his or her CDL revoked for at least 10 years and a third violation will cause a permanent, lifetime revocation.

Although refusing to take a chemical test (of breath, blood, or urine) is not a crime or traffic infraction, a driver who meets the criteria for being considered a "first offender" and who refuses to take a chemical test may have his or her driver's license revoked for at least one year (18 months for a CDL) and must pay a civil penalty of \$500 (\$550 for a CDL). If you are considered a repeat offender due to a prior refusal or conviction for an alcohol or drug-related driving offense or for certain other offenses, then you will be required to pay a civil penalty of \$750 and may have your driver's license revoked for at least one year (10 years minimum for a CDL).

If your license is suspended or revoked for commission of an alcohol or drug-related driving offense, then you may be eligible for a conditional license ("CL") that will afford you some limited driving privileges during the sanction period (no CDL privileges are granted by a CL). In order to obtain a CL, you will have to enroll in an approved drinking driver program ("DDP"), pay the required fees, and meet other eligibility requirements. DMV charges a \$75 administrative fee upon DDP enrollment, and the DDP charges an additional course fee of up to \$225. You may be referred by the DDP for formal substance abuse evaluation or treatment at an additional cost. If you fail to complete the DDP or any required evaluation or treatment, then your CL will be revoked. If you commit almost any traffic infraction while holding a CL, then the CL will be revoked. Typically, if your CL is revoked, your original license suspension or revocation will be reinstated for its full length with no credit being given for the time you held the CL. During a suspension or revocation period, you may not lawfully drive for any reason.

If you do not have a CL and you drive while your license is suspended or revoked due to an alcohol or drug-related driving conviction or a chemical test refusal, you may be convicted of aggravated unlicensed operation of a motor vehicle ("AUO") in the second degree, subject to a fine of \$500 to \$1,000, and sentenced to either imprisonment for seven to 180 days, or probation with a possible condition of alcohol or drug treatment imposed.

HOW MANY DRINKS MAKE YOU LEGALLY INTOXICATED?

In New York State, you are legally intoxicated when your BAC reaches .08%. You are considered to be driving while ability impaired (DWAI) when your BAC is more than .05%, but less than .08%.

Any amount of drinking will affect your judgment and coordination. The degree of impairment depends on four basic factors:

- (a) how much you drink;
- (b) how long you drink;
- (c) eating before or during drinking, as food slows absorption of alcohol; and
- (d) your body weight.

A 12-ounce can of beer, 5-ounce glass of wine, or a shot of 86-proof liquor all contain the same amount of alcohol. Your body metabolizes about one drink each hour. Only time will truly sober you up, not coffee, a walk, or a cold shower.

Therefore, if you consume more than one drink per hour, the likelihood is that you are at least DWAI if you weigh around 110 pounds and had two drinks, or DWAI if you had three drinks and weigh 170 pounds or more. As a rule of thumb for an average 140-160 pound person, BAC level rises .02% per hour per drink.

As an example, a 140-pound person who consumes five drinks in a two-hour period will have a .08% BAC (deducting .02% for the passage of time). Even if no more alcohol is consumed, that individual may not safely drive for at least four hours. Remember, any elevation in BAC will impair your judgment and coordination.

ALCOHOL/DRUG-RELATED CONVICTIONS AND YOUR AUTOMOBILE INSURANCE POLICY

Suspension or revocation of your driver's license or the driver's license of any person who operates an automobile insured under your policy is just cause for your insurance company to cancel your automobile insurance policy.

A conviction of driving while impaired or intoxicated through the use of alcohol or drugs will probably result in non-renewal of your insurance policy, and in your inability to obtain insurance with another company in the voluntary market. You will then find yourself relegated to the New York Automobile Insurance Plan ("Assigned Risk Plan"), at a substantially higher cost.

Currently, under the Assigned Risk Plan, a conviction of operating a motor vehicle while intoxicated or impaired by the use of alcohol or drugs will result in a 75% surcharge, increasing your automobile insurance premiums for three years. Most automobile insurance companies also will surcharge your premiums substantially for any convictions of operating a motor vehicle while under the influence of alcohol or drugs.

NO-FAULT EXCLUSIONS/CONDITIONS

Another reason for not driving in an intoxicated or impaired condition due to drinking or drugs is that your no-fault insurance benefits will not be available to you if you are injured as a result of this condition, except for necessary emergency health services rendered in a general hospital or by an ambulance attendant. Subsequent basic economic loss (such as general medical expenses, wage loss, other necessary expenses, or a death benefit) attributable to your own bodily injury is excluded from the no-fault insurance system. It is important to be aware that your auto insurance company may seek to collect from you the amount paid or payable for the emergency services rendered to you if you are found guilty of operating the vehicle while under the influence of alcohol or drugs pursuant to the VTL. If you permit a "designated driver" (i.e. a non-DWI or non-DWAI person) to drive your vehicle for you, then full no-fault insurance benefits will be available to you and all occupants of your vehicle in case of an accident.

Here, then, are the sobering facts:

FINES AND IMPRISONMENT PENALTIES FOR ALCOHOL/DRUG-RELATED DRIVING OFFENSES

According to the VTL, the following penalties will be imposed for the noted violations:

**AGGRAVATED DRIVING WHILE INTOXICATED
AGG-DWI (0.18 AND HIGHER BAC [BLOOD ALCOHOL CONTENT])**

CONVICTION	FINE ONLY ¹	JAIL SENTENCE	LICENSE ACTION & REQUIREMENTS ²	
			AGE 21 & OLDER	UNDER AGE 21
1st Offense (Misdemeanor)	Minimum \$1000 Maximum \$2500	Up to 1 Year	- Minimum 1-Year Revocation	Minimum 1-Year Revocation
2nd Offense within 10 Years (Class E Felony)	Minimum \$1000 Maximum \$5000	Up to 4 Years	- Minimum 18-Month Revocation	18-Month Revocation or until age 21, whichever is longer
3rd Offense or more within 10 Years (Class D Felony)	Minimum \$2000 Maximum \$10000	Up to 7 Years	- Minimum 18-Month Revocation	18-Month Revocation or until age 21, whichever is longer

**DRIVING WHILE INTOXICATED (DWI or .08 and higher BAC)
DRIVING WHILE IMPAIRED BY DRUG (DWAI-DRUG)
DRIVING WHILE IMPAIRED BY COMBINED ALCOHOL & DRUG (DWAI-Combination)**

CONVICTION	FINE ONLY ¹	JAIL SENTENCE	LICENSE ACTION & REQUIREMENTS ²	
			AGE 21 & OLDER	UNDER AGE 21
1st Offense (Misdemeanor)	Minimum \$500 Maximum \$1000	Up to 1 Year	- Minimum 6-Month Revocation	Minimum 1-Year Revocation
2nd Offense within 10 Years (Class E Felony)	Minimum \$1000 Maximum \$5000	Up to 4 Years	- Minimum 1-Year Revocation	1-Year Revocation or until age 21, whichever is longer ³
3rd Offense or more within 10 years (Class D Felony)	Minimum \$2000 Maximum \$10000	Up to 7 Years	- Minimum 1-Year Revocation	1-Year Revocation or until age 21, whichever is longer ³

**DRIVING WHILE ABILITY IMPAIRED BY ALCOHOL
DWAI (MORE THAN .05 UP TO .07 BAC)**

CONVICTION	FINE ONLY ¹	JAIL SENTENCE	LICENSE ACTION & REQUIREMENTS ²	
			AGE 21 & OLDER	UNDER AGE 21
1st Offense (Traffic Infraction)	Minimum \$300 Maximum \$500	Up to 15 Days	- 90-Day Suspension	Minimum 1-Year Revocation
2nd Offense within 5 Years (Traffic Infraction)	Minimum \$500 Maximum \$750	Up to 30 Days	- Minimum 6-Month Revocation	1-Year Revocation or until age 21, whichever is longer
3rd Offense or more within 10 years (Misdemeanor)	Minimum \$750 Maximum \$1500	Up to 180 Days	- Minimum 6-Month Revocation	1-Year Revocation or until age 21, whichever is longer

**ZERO TOLERANCE LAW (ZTL)
FOR DRIVER UNDER AGE 21 WITH .02 TO .07 BAC ⁴**

CONVICTION	FINE ONLY ¹	JAIL SENTENCE	LICENSE ACTION & REQUIREMENTS ²
1st Offense	\$125 civil penalty and \$100 fee to terminate suspension	N/A	6-Month Suspension
2nd Offense	\$125 civil penalty and \$100 re-application fee	N/A	1-Year Revocation or until age 21, whichever is longer

CHEMICAL TEST REFUSAL (CTR)

CONVICTION	FINE ONLY ¹	JAIL SENTENCE	LICENSE ACTION & REQUIREMENTS ²
Chemical Test Refusal (CTR)	\$500 civil penalty;	N/A	- Minimum 1-Year Revocation
CTR within 5 years of a previous DWI-related charge/CTR	\$750 civil penalty	N/A	- Minimum 18-Month Revocation 1-Year Revocation or until age 21, whichever is longer, for drivers under age 21
CTR-under Zero Tolerance Law (ZTL)	\$300 civil penalty and \$50 re-application fee	N/A	Minimum 1-Year Revocation
CTR-Second or subsequent under ZTL	\$750 civil penalty and \$50 re-application fee	N/A	Minimum 1-Year Revocation

OUT-OF-STATE DRIVING UNDER THE INFLUENCE CONVICTIONS

CONVICTION	FINE ONLY ¹	JAIL SENTENCE	LICENSE ACTION & REQUIREMENTS ²
Driving Under the Influence (Out-of-State)	N/A	N/A	- Minimum 90-Day Revocation - Minimum 1-Year Revocation for drivers under age 21
Driving Under the Influence (Out-of-State) with any previous alcohol-drug violation	N/A	N/A	- Minimum 90-Day Suspension (longer with certain prior offenses) - Minimum 1-Year Revocation or until age 21, whichever is longer, for drivers under age 21

¹ Conviction fine only. Does not include any mandatory conviction surcharge, crime victims assistance fee or \$750 DRA, as applicable.

² The DMV determines when your license may be returned or reinstated based on state law or regulation.

³ If a prior conviction is aggravated DWI, then revocation is 18-months or until age 21, whichever is longer.

⁴ If your BAC is .05 or higher, then DWAI or DWI may be charged.

NOTE: Penalties (including fines and jail terms) may be higher for a person with multiple offenses, a CDL, or for violations while transporting certain types of passengers or materials.

IMPORTANT NOTICE

ACCIDENT PREVENTION COURSE DISCOUNT - NEW YORK

New York Law requires that a discount shall be applied to the Bodily Injury Liability, Property Damage Liability, Personal Injury Protection and Collision insurance policy coverages for drivers who successfully complete an approved Motor Vehicle Accident Prevention Course as approved by the NYS Department of Motor Vehicles (DMV). The current list of approved course sponsors is shown below:

Internet Course and Other Alternative Delivery Method Course Providers

Empire Safety Council

Liberty, NY 12754-5819

<http://www.empiresafetycouncil.com>

4265 Millbrook Avenue - Ste. 200

1-800-962-3434
<http://www.drivesafe.com/newyork>

National Traffic Safety Institute (NTSI) e - Suite 206

Cortland, NY 13045

<http://www.ntsni.com/newyork>

New York Safety Program (NYSP)

Monroe, NY 10950

<http://www.nysponline.com>

6789 Summit Drive - Suite 350

1-800-972-4659
<http://www.NewYorkDefensiveDriving.com>

AARP 22

Canton, TX 13617

<http://www.aarpdriversafety.org>

8844 Meridian Drive - Suite 606

1-800-800-7121
<http://www.bigappletrafficschool.com>

AAA Driver Improvement Program

Herkimer, NY 13350

<http://www.AAA.com/defensivedriving>

165 Maple Drive **iving Course By Improv**
, 4th Floor

1-800-660-8908
<http://www.MyImprovNewYork.com>

Ashcroft Industries **(DTA)**
Kingston, NY 12401 210

<http://www.ticketschool.com/newyork>

American Safety Council d Spanish)

4739 Lincoln Drive

1-877-689-0674
<http://www.NewYorkSafetyCouncil.com>

I DRIVE SAFELY, LLC 1560

Medina, NY 14103

Internet Course
<https://www.idrivesafely.com/defensive-driving/new-york/pirp/>

DVD Video Course
<http://www.takehome.com/new-york/>

Please contact the New York State Department of Motor Vehicles for additional information.
<https://dmv.ny.gov/pirp/online>

Classroom Course Providers

Empire Safety Council

Liberty, NY 12754-5819

<http://www.empiresafetycouncil.com>

5287 Lincoln Road

- Suite 400

1-800-746-7690

<http://www.newyorkdefensivedriving.com>

165 Maple Drive
Dr. James J. Driscoll's Traffic Safety Course
Suite 4th Floor

1-800-660-8908

<http://www.MyImprovNY.com>

AARP

Liberty, NY 12754-5148

<http://www.aarp.org/drive>

www.LowCostAccidentPrevention.com

Medina, NY 14103
Suite 216

<http://www.LowCostAccidentPrevention.com>

American Automobile Association (AAA)

Warwick, NY 10990-2334

<http://www.AAA.com>

4265 Millbrook Avenue - Ste. 200

1-800-962-3434

<http://www.drivesafe.com/newyork>

8844 Meridian Drive

- Suite 606

1-800-800-7121

<http://www.bigappletrafficschool.com>

National Traffic Safety Institute

Oneonta, NY 13820-3393
Suite 206

<http://www.ntsai.com/newyork>

4739 Lincoln Drive
City

1-877-689-0674

<http://www.safemotorist.com>

New York Safety Program

Albany, NY 12242-7837
Room 210

<http://www.nysp.com>

Ashcroft Industries

Kingston, NY 12401

<http://www.ticketschool.com/newyork>

BLUE FORK

1485 Summit Drive
Discount
Suite 202
04

1-877-697-2331

<http://www.defensivedriversdiscount.com>

5579 Orchard Road

1-877-374-8388

<https://www.idrivesafely.com/defensive-driving/new-york>

The following organizations provide approved courses for their employees/members only. If you are an employee or member, contact the organization directly.

Nassau County Police Department
NYC Fire Department EVO Unit, Bureau of EMS
NYC Police Department, Driver Education & Training Unit
NYS Education Department c/o Eastern Suffolk BOCES
NYS Department of Transportation
New York State Police Academy
Suffolk County Police Department

Please contact the New York State Department of Motor Vehicles for additional information.
<https://dmv.ny.gov/pirp/classroom>

This is a Notice regarding your Personal Auto Policy. No coverage is provided by this Notice nor can it be construed to replace any provision of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided. If there is any conflict between the Policy and this summary, **THE PROVISIONS OF YOUR PERSONAL AUTO POLICY SHALL PREVAIL.**

This Notice provides information concerning ride-sharing arrangements through Transportation Network Companies (TNCs) and the potential insurance implications for TNC drivers.

TNCs typically offer a ride-sharing service which uses smart-phone applications and other Internet-based platforms to connect passengers with drivers who use personal autos to provide transportation services for a donation or fee.

Your policy's Liability Coverage contains an exclusion for an insured's liability arising out of the ownership or operation of a motor vehicle while the motor vehicle is used by a "transportation network company driver" who is logged into the "transportation network company's" "digital network" but is not engaged in a "transportation network company prearranged trip" or while the driver provides a "transportation network company prearranged trip". Similar exclusions also apply to Uninsured Motorists Coverage, Rental Vehicle Coverage and Personal Injury Protection Coverage, as well as Additional Personal Injury Protection Coverage, Medical Payments Coverage, Supplementary Uninsured/Underinsured Motorists Coverage and Coverage For Damage To Your Auto (if applicable).

As used in your policy:

- "Transportation network company" or "TNC" means a person, corporation, partnership, sole proprietorship, or other entity that is licensed pursuant to this article and is operating in New York state exclusively using a "digital network" to connect "transportation network company passengers" to "transportation network company drivers" who provide "TNC prearranged trips".
- "Digital network" means any system or service offered or utilized by a "transportation network company" that enables "TNC prearranged trips" with "transportation network company drivers".
- "Transportation network company driver" or "TNC driver" means an individual who:
 - Receives connections to potential "TNC passengers" and related services from a "transportation network company" in exchange for payment of a fee to the "transportation network company"; and
 - Uses a "TNC vehicle" to offer or provide a "TNC prearranged trip" to "transportation network company passengers" upon connection through a "digital network" controlled by a "transportation network company" in exchange for compensation or payment of a fee.
- "Transportation network company passenger" or "TNC passenger" means a person or persons who use a "transportation network company's" "digital network" to connect with a "transportation network company driver" who provides "TNC prearranged trips" to the "TNC passenger" in the "TNC vehicle" between points chosen by the "TNC passenger".
- "TNC prearranged trip" or "TNC trip" means the provision of transportation by a "transportation network company driver" to a "TNC passenger" provided through the use of a "TNC's digital network":
 - Beginning when a "transportation network company driver" accepts a "TNC passenger's" request for a "TNC trip" through a "digital network" controlled by a "transportation network company";

- Continuing while the "transportation network company driver" transports the requesting "TNC passenger" in a "TNC vehicle"; and
- Ending when the last requesting "TNC passenger" departs from the "TNC vehicle".

The term "TNC prearranged trip" does not include transportation provided through any of the following:

- Shared expense carpool or vanpool arrangements, including those as defined in Section 158-b of the New York Vehicle and Traffic Law; and
 - Use of a taxicab, livery, luxury limousine, or other for-hire vehicle as defined in the New York Vehicle and Traffic Law, Section 19-502 of the Administrative Code of the City of New York, or as otherwise defined in local law.
- "Transportation network company vehicle" or "TNC vehicle" means a vehicle that is:
- Used by a "transportation network company driver" to provide a "TNC prearranged trip" originating within the state of New York; and
 - Owned, leased or otherwise authorized for use by the "transportation network company driver";
 - Such term shall not include:
 - A taxicab, as defined in Section 148-a of the New York Vehicle and Traffic Law and Section 19-502 of the Administrative Code of the City of New York, or as otherwise defined in local law;
 - A livery vehicle, as defined in Section 121-e of the New York Vehicle and Traffic Law, or as otherwise defined in local law;
 - A black car, limousine, or luxury limousine, as defined in Section 19-502 of the Administrative Code of the City of New York, or as otherwise defined in local law;
 - A for-hire vehicle, as defined in Section 19-502 of the Administrative Code of the City of New York, or as otherwise defined in local law;
 - A bus, as defined in Section 104 of the New York Vehicle and Traffic Law;
 - Any motor vehicle weighing more than six thousand five hundred pounds unloaded;
 - Any motor vehicle having a seating capacity of more than seven passengers; and
 - Any motor vehicle subject to Section 370 of the New York Vehicle and Traffic Law.

Unless indicated below, coverage options are not available under your policy for ride-sharing arrangements through Transportation Network Companies (TNCs) with respect to Liability Coverage, Uninsured Motorists Coverage, Rental Vehicle Coverage and Personal Injury Protection Coverage, as well as Additional Personal Injury Protection Coverage, Medical Payments Coverage, Supplementary Uninsured/Underinsured Motorists Coverage and Coverage For Damage To Your Auto (if applicable).

☐ If indicated to the left, coverage options are available under your policy for ride-sharing arrangements through Transportation Network Companies (TNCs).

You should:

- Review your Personal Auto Policy and any applicable TNC insurance policy carefully; and
- Contact your insurance agent or broker to discuss potential gaps in insurance coverage under your policy and the TNC policy which may arise while participating as a TNC driver.

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AMERICAN Fairmount Automotive
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FACTS	WHAT DOES AMERICAN Fairmount Automotive DO WITH YOUR PERSONAL I
Why?	Insurance companies choose how they share your personal information. Federal and state law gives consumers the right to limit some but not all sharing. Federal and state law also requires us to tell you how we collect, share, and protect your personal information. Please read this notice carefully to understand what we do.
What?	The types of personal information we collect and share depend on the product or service you have with us. This information can include: ■ Social Security number and payment history ■ insurance claim history and medical information ■ account transactions and credit scores When you are no longer our customer, we continue to share information about you as described in this notice.
How?	All insurance companies need to share customers' personal information to run their everyday business. In the section below, we list the reasons insura their customers'personal information; the reasons American Fairmount Automotive chooses to share; and whether you can limit this sharing.
Reasons we can share your personal information	Can you limit this sharing?
For our everyday business purposes – such as to process your transactions, maintain your account(s), respond to court orders and legal investigations, or report to credit bureaus or insurance support organizations.	No
For our marketing purposes – to offer our products and services to you	No
For joint marketing with other financial companies	No
For our affiliates' everyday business purposes – information about your transactions and experiences	No
For our affiliates' everyday business purposes – information about your creditworthiness	We don't share
For our affiliates to market to you	We don't share
For nonaffiliates to market to you	We don't share
Questions?	Call 1-800-543-2644 or go to https://amig.com/company/internet-privacy-policy/

Who we are		
Who is providing this notice?	The American Fairmount Automotive the American Fairmount Automotive Notice section	. A list of the entities is located in U.S. Legal Entities Providing This nt.
What we do		
Fairmount Automotive information?	To protect your personal information from unauthorized access and use, we use security measures that comply with federal law. These measures include computer safeguards and secured files and buildings. We restrict access to personal information to our employees, affiliates' employees, or others who need to know that information to service the account or to conduct our normal business operations.	
Fairmount Automotive n al information?	We collect your personal information, for example, when you ■ apply for insurance or pay insurance premiums ■ file an insurance claim or provide account information ■ give us your contact information We also collect your personal information from others, such as credit bureaus, affiliates, or other companies.	
Why can't I limit all sharing?	Federal law gives you the right to limit only ■ sharing for affiliates' everyday business purposes – information about your creditworthiness ■ affiliates from using your information to market to you ■ sharing for nonaffiliates to market to you State laws and individual companies may give you additional rights to limit sharing. See below for more on your rights under state law.	
Definitions		
Affiliates	Companies related by common ownership or control. They can be financial and nonfinancial companies. ■ Our affiliates include those with an A Fairmount Automotive other companies, such as BLUE FORK CONTRACTING Granite Row Blue Fork Works Blue Fork Works	
Nonaffiliates	Companies not related by common ownership or control. They can be financial and nonfinancial companies. ■ American Fairmount Automotive does not share with nonaffiliates so they can	
Joint Marketing	A formal agreement between nonaffiliated financial companies that together market financial products or services to you. ■ Our joint marketing partners include categories of companies such as banks.	

Other important information

For Insurance Customers in AZ, CA, CT, GA, IL, MA, ME, MN, MT, NV, NC, NJ, OH, OR, and VA only: Under state law, under certain circumstances, you have the right to opt out of these calls by adding your name to our internal do-not-call list. To opt out of these calls, or for more information, please contact the Nevada Department of Justice, 775-684-1100, emailing info@example.net, or by writing to the Nevada Department of Justice, 252 Riverside Avenue, Carson City, NV 89701.

you that we have on file with you. If you do not agree with our actions, you may write us. We will let you know what actions we take. If you do not agree with our actions, you may send us a statement. If you want a full description of privacy rights that we will protect in accordance with the law in your home state, please contact us and we will provide it. We may disclose information to certain third parties, such as state insurance officials or law enforcement officers, without your permission.

For Nevada residents only: We may contact our existing customers by telephone to offer additional insurance products that we believe may be of interest to you. Under Nevada law, you have the right to opt out of these calls by adding your name to our internal do-not-call list. To opt out of these calls, or for more information, please contact the Nevada Department of Justice, 775-684-1100, emailing info@example.net, or by writing to the Nevada Department of Justice, 252 Riverside Avenue, Carson City, NV 89701.

For Vermont residents only: Under Vermont law, we will not share information we collect about you with companies outside of our corporate family, unless the law allows. For example, we may share information with your consent, or to service your accounts. We will not share information about your creditworthiness within our corporate family except with your authorization or consent, but we may share information about our transactions or experiences with you within our corporate family without your consent.

For California residents only: Under California law, we will not share information we collect about you with companies outside of our corporate family, unless the law allows. For example, we may share information with your consent, or to service your accounts. We will limit sharing among our companies to the extent required by California law.

American Fairmount Automotive

U.S. Legal Entities Providing This Notice

This notice is being provided by the following American Fairmount Automotive entities:

American Fairmount Automotive	Granite Row	
Granite Row	Tallgrass Works	
Winslow Motorworks	Winslow Motorworks	
Harbor Point Industries	Blue Fork Works	
Fairmount Works	Harbor Point Mechanical	
	Meridian Automotive Services	
	Fairmount Fabrication	
	Harbor Point Contracting	

Inc..

**REGULATION NO. 150 COMPLIANCE
MULTI-TIER DISCLOSURE - NEW YORK**

This policy is issued as part of a multi-tier program as permitted by Regulation 150 of New York State Insurance Code. The tier placement has been determined based upon objective underwriting criteria. The policy was assigned to one of ten rate tiers. Tier 1 offers the lowest rate, while Tier 10 offers the highest. Your rate will vary based on the assigned tier. **Rates in some tiers may be higher than those of the New York Automobile Insurance Plan (NYAIP).** It is possible for you to move into a lower-rated tier upon renewal of your policy by one or more of the following means:

- Should you have further questions regarding the multi-tier program, or if you need further information on how to improve your Financial Responsibility rating, you may contact your
- | | | | | | | |
|-----------------------|-----------------------|-----------------------|---------------|------------------|------------------|-------|
| Fairmount Enterprises | Fairmount Enterprises | Fairmount Enterprises | P.O. Box 7215 | Canton, OH 13617 | Canton, OH 13617 | or at |
|-----------------------|-----------------------|-----------------------|---------------|------------------|------------------|-------|

IMPORTANT NOTICE OPTIONAL BASIC ECONOMIC LOSS - NEW YORK

PLEASE READ CAREFULLY

To: All New York Motorcycle and All-Terrain Vehicle (ATV) Policyholders

The New York No-Fault Law and an Insurance Department Regulation requires that the following letter be sent to all New York motor vehicle, motorcycle and ATV policyholders. Because your insured vehicle is a motorcycle or ATV some of the wording in the required letter is not appropriate for motorcycle or ATV policyholders. While reading the following letter, please keep in mind that motorcycle/ATV No-Fault "PIP" coverage (including the optional "OBEL" coverage) applies only to loss sustained by pedestrians injured in motorcycle or ATV accidents. In other words motorcycle/ATV "PIP" coverage (including "OBEL" coverage if purchased) does not apply to any person while occupying any motorcycle, any ATV or any motor vehicle.

Dear Policyholder:

Optional Basic Economic Loss (OBEL) coverage is being offered to you as an enhancement of the Basic No-Fault coverage you are presently required to purchase. But before we describe this coverage, we would like to advise you what benefits Basic No-Fault coverage does and does not provide.

No-Fault coverage, otherwise known as Personal Injury Protection or "PIP" coverage, pays for expenses incurred by persons injured in a motor vehicle accident. This coverage does not pay to repair damage to your automobile.

Basic No-Fault, which you are required by law to purchase, provides coverage of up to \$50,000 per person in benefits for:

1. all necessary doctor and hospital bills and other health service expenses, payable in accordance with fee schedules established or adopted by the New York State Department of Financial Services; and
2. 80% of lost earnings up to a maximum monthly payment of \$2,000 for up to three years following the date of accident; and
3. up to \$25 per day for a period of one year from the date of the accident for other reasonable and necessary expenses the injured person may have incurred because of an injury resulting from the accident, such as the cost of hiring a housekeeper or necessary transportation expenses to and from a health service provider; and
4. a \$2,000 death benefit, payable to the estate of a covered person, in addition to the \$50,000 coverage for economic loss described above.

No-Fault benefits will be reduced by other benefits that are payable under Workers' Compensation, Social Security Disability, New York State Disability, and certain employer "wage continuation" plans where an employee does not lose any future sick leave benefits.

OPTIONAL COVERAGE AVAILABLE

In addition to Basic No-Fault Coverage, you may also purchase OBEL coverage that will pay certain expenses, up to \$25,000, above the Basic No-Fault limit of \$50,000. OBEL coverage is different from other coverages in that a claimant can select the kinds of benefits to be paid under OBEL.

If you purchase OBEL coverage and if it appears likely that a claimant will use up the Basic No-Fault coverage, your insurer will send the claimant a form for the claimant to choose what expenses the \$25,000 in OBEL coverage will be used to pay. Under No-Fault, a claimant could include you, family members, passengers in your car, or pedestrians, if injured in an auto accident. The claimant will be able to choose one of the following four OBEL options and thereby direct the insurer to pay expenses for:

1. basic economic loss, whether health care expenses, loss of earnings from work, or other reasonable and necessary expenses;
2. loss of earnings from work;
3. psychiatric, physical or occupational therapy and rehabilitation; or
4. a combination of options 2 and 3.

The additional \$25,000 of OBEL coverage will be used only for costs incurred under the chosen option, which, once selected, the claimant cannot change.

If you have any questions, please contact your company or agent.

REQUIRED NOTICE OF AVAILABILITY OF SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE - NEW YORK

I. EXPLANATION OF THE DIFFERENCE BETWEEN STATUTORY UNINSURED MOTORISTS COVERAGE AND SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE (SUM COVERAGE)

Under New York law you must buy **either** Statutory Uninsured Motorists Coverage **or** Supplementary Uninsured/Underinsured Motorists Coverage (SUM Coverage), which includes the Statutory Uninsured Motorists Coverage. This section is an advisory explanation of the primary differences between these two types of coverages, but is not intended to be a substitute for a complete review of both coverages. If there is any conflict between the policy and this explanation, the provisions of **your po** ve any questions regarding this information, please contact your agent, Granite Row, or the New York Department of Financial Services for further explanatio

TYPE 1: STATUTORY UNINSURED MOTORISTS COVERAGE

Statutory Uninsured Motorists Coverage compensates you, or other persons insured under your motor vehicle insurance policy, for amounts that you, or your passengers, may be legally entitled to collect as damages for bodily injury or death from an accident caused by an owner or operator of an **uninsured motor vehicle**. An uninsured motor vehicle is a motor vehicle that either has no liability insurance coverage or is operated by a hit-and-run driver. In order to drive your automobile upon the roads of this State, you **must** obtain this coverage as your **minimum limits**.

If someone is injured as a result of an accident with an uninsured motor vehicle, your Statutory Uninsured Motorists Coverage can pay up to \$25,000 for each person injured, with a \$50,000 maximum for each accident. If someone is killed as a result of such an accident, your Statutory Uninsured Motorists Coverage can pay up to \$50,000 for each person killed, with a \$100,000 maximum for each accident resulting in death to two or more people. These limits are the **only** limits you can obtain under Statutory Uninsured Motorists Coverage.

Statutory Uninsured Motorists Coverage will pay for bodily injury or death only if the car accident happens **in-state**, that is, in the State of New York.

TYPE 2: SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE (SUM COVERAGE)

ASHCROFT FABRICATION

Uninsured Motorists Coverage (described above) plus additional coverages, which may provide you with a greater degree of protection.

MERIDIAN HOLDINGS

passengers, may be legally entitled to collect as damage for bodily injury if there is an accident. Here, in contrast however, you have the opportuni out of **uninsured motorists** coverage desired (from an offering from the Granite Row which is provided below). Additionally, since there is a possibility of an between you and an **underinsured motorist**, SUM Coverage can provide you with "underinsured" coverage, which is coverage for an accident between you and a car that has bodily injury liability insurance that is less than your own bodily injury liability limits that you have on your own car. However, please note that the SUM coverage cannot exceed the limits of the third-party liability coverage that you have on your own car.

Also, SUM Coverage provides coverage for bodily injury or death for not only in-state accidents, but also **out-of-state accidents**.

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IMPORTANT SUM NOTICE:

For purposes of further clarification, New York law requires that the following explanation, as provided in 11 NYCRR 60-2.1, be provided to you in this notice:

- * SUM provides additional insurance coverage for bodily injury, including death resulting therefrom, sustained by an insured, as a result of an accident involving a negligent owner or operator of another motor vehicle who:
 - (1) may have no insurance whatsoever; or
 - (2) even if insured, is only insured for third-party bodily injury coverage at relatively low liability limits, in comparison to the policyholder's own liability limits for bodily injury sustained by third-parties.
- * An insurer shall not offer SUM coverage in an amount exceeding the third-party liability coverage limits purchased by the policyholder. The policy shall provide coverage for any insured under the policy for:
 - (1) bodily injury to such person, up to the limit of the SUM coverage purchased; and
 - (2) receive from the policyholder's own insurer payment for bodily injury sustained due to the negligence of the other motor vehicle's owner or operator.
- * The maximum amount payable under the SUM coverage shall be the policy^{ASHCROFT} reduced and thus offset by any motor vehicle bodily injury liability insurance bond payments received from, or on behalf of, any negligent party involved in the accident.

For purposes of further clarification regarding Transportation Network Companies (TNC) Services, 11 NYCRR 60-2.2 requires that every insurer writing motor vehicle liability insurance providing liability insurance coverage in satisfaction of the financial responsibility requirements of Vehicle and Traffic Law article 44-B must provide the following notice:

- * if the policy provides liability coverage as required by Vehicle and Traffic Law section 1693(3), SUM coverage is being provided while the driver provides a prearranged trip;
- * if the policy provides liability coverage as required by Vehicle and Traffic Law section 1693(2), SUM coverage is available while the driver is logged onto a transportation network company's digital network but is not engaged in a transportation network company prearranged trip, including the SUM limits being offered for purchase on the last page of this notice.

EXAMPLES:

As provided in 11 NYCRR 60-2.2, the following examples, using per person limits unless otherwise noted, illustrate the proper application of SUM coverage:

(1) Example One:

Insured ^{IRONVALE FABRICATION}	\$300,000
Insured ^{CLEARWATER WORKS}	\$500,000
Insured ^{ASHCROFT}	\$250,000
Other Motor Vehicle Liability Limit	\$25,000

Result: In this example, the insured has purchased the maximum amount of SUM coverage that must be offered by the insurer, provided that the insured has purchased bodily injury liability limits of at least \$250,000. Insured recovers \$25,000 from the negligent owner or operator of the other motor vehicle, and \$225,000 (\$250,000 minus \$25,000) under the SUM coverage, for a total recovery of \$250,000.

In the event that the negligent owner or operator of the other motor vehicle had no liability insurance coverage from the insured, the insured would collect \$250,000 in SUM. However, if the owner or operator of the other motor vehicle was not negligent, then the insured would receive no SUM payments.

(2) Example Two:

Insured IRONVALE FABRICATION	\$100,000
Insured CLEARWATER WORKS	\$25,000
Insured ASHCROFT	\$25,000
Other Motor Vehicle Liability Limit	\$25,000

Result: Insured recovers \$25,000 from the negligent owner or operator of the other motor vehicle. The insured receives nothing under the SUM coverage, which equals the mandatory UM coverage, since the liability limits on the other owner or operator's motor vehicle were not lower than the liability insurance limits on the insured's motor vehicle. If the insured's liability and SUM limits were both \$50,000, the insured would collect another \$25,000 in SUM coverage from the insured.

(3) Example Three:

Insured IRONVALE FABRICATION	\$60,000
Insured CLEARWATER WORKS	\$100,000
Insured ASHCROFT	\$100,000
Other Motor Vehicle Liability Limit	\$50,000

Result: Insured recovers \$50,000 from the negligent owner or operator of the other motor vehicle and \$10,000 under the SUM coverage, which is the difference between the amount of the insured's SUM coverage and the liability coverage available from the negligent owner or operator, limited by the amount of the insured's liability coverage.

(4) Example Four:

Insured IRONVALE FABRICATION	\$150,000
Insured CLEARWATER WORKS	\$100,000
Insured ASHCROFT	\$100,000
Other Motor Vehicle Liability Limit	\$25,000

Result: If the insured and the owner or operator of the other motor vehicle were each 50 percent at fault for the accident, then the insured's total recovery would be \$75,000, in light of comparative negligence of the parties involved in the accident. The insured would recover \$25,000 from the negligent owner or operator of the other motor vehicle and \$50,000 under the SUM coverage.

On the other hand, if the owner or operator of the other motor vehicle was totally at fault for the accident, then the insured would recover \$25,000 from the negligent owner or operator and \$125,000 under the SUM coverage. Had the insured purchased liability coverage from the insured, the insured would then receive \$75,000 in SUM and SUM limits of \$150,000. Had the insured purchased liability coverage from the insured, the SUM recovery would then be \$125,000.

(5) Example Five:

Insured	IRONVALE FABRICATION	\$25,000
Passenger	IRONVALE FABRICATION	\$25,000
Another Passenger's Damages that resulted in death		\$50,000
Insured	WINSLOW MECHANICAL	\$75,000
Insured	CLEARWATER	\$75,000
Other Motor Vehicle Liability Limit		Uninsured (i.e. no coverage)

Result: Since the other motor vehicle was uninsured, the full \$75,000 CSL SUM limit is available for all insured persons from this accident under the policy. However, since the accident involves insured persons who were both injured and killed, the mandatory UM limits of \$25,000 per person and \$50,000 per accident for injured persons and \$50,000 per person and \$100,000 per accident for persons killed in the accident are available. Therefore, the insured second passenger's estate

NORTHVALE HOLDINGS

If the insured's CSL and CSL SUM limit were each \$300,000 and the insured's damages amounted to \$200,000, then all insured persons would be covered under the SUM coverage as the total damages (\$200,000 + \$25,000 + \$50,000 = \$275,000) are less than the \$300,000 CSL SUM limit.

II. OFFERINGS

A. OFFER OF STATUTORY UNINSURED MOTORISTS (UM) COVERAGE (SPLIT LIMITS)

Offer of UM Coverage \$25,000 / \$50,000

B. OFFER OF SUPPLEMENTARY UNINSURED MOTORISTS (SUM) COVERAGE (SPLIT LIMITS)

Offer of SUM Coverage

\$25,000 / \$50,000

\$50,000 / \$100,000

\$100,000 / \$300,000

\$250,000 / \$500,000

If you want to make any changes to your coverage limits, please contact your agent.

AMERICAN MODERN Fairmount Works
MOTOR
RATING STATEMENT AND DISCOUNTS - NEW YORK

The information on the following pages explains how we classified your vehicle. We established the classification based on statements made by or on behalf of the named insured.

- This classification is one of the components we use in developing your premiums for the following coverages:

Bodily Injury Liability
Property Damage Liability
Comprehensive
Collision
Medical Payments
Statutory Uninsured Motorists
Supplementary Uninsured Motorists
Pedestrian Personal Injury Protection
Optional Basic Economic Loss (OBEL)
Passenger Liability

- We rate your policy based on the following:

Rating Factors;

Discounts;

Surcharges.

Rating Factors

Symbol - Symbol represents a classification of vehicles that are rated the same.

Engine Size - Engine size is the power of the engine measured in cubic centimeters.

Model year - Model year is the model year of the vehicle as defined by the manufacturer.

Modification - Modification would indicate a vehicle has been modified from its stock condition.

Years of Ownership - This is defined as how long the primary named insured has owned the vehicle that is being insured.

Territory - The vehicle garaging address is used to determine the defined territory and associated rate.

Marital Status - Marital status is categorized as Civil Union, Divorced, Domestic Partner, Married, Separated, Single, or Widowed for each driver.

Driver Assignment - Drivers are assigned to vehicles for rating purposes. This assignment is determined by a combination of driver age, marital status, and driving record (accidents and violations) within the experience period.

Driver Age - Driver age is calculated based on the actual Month / Day / Year of the policy term effective date minus the Month / Day / Year of the date of birth rounded down to the nearest integer.

Driving Record - The driving record is determined from the accidents and violations accumulated during the experience period for each driver. The experience period is the 36-month period prior to the policy term effective date.

Liability Limit - The limit the insured selects for third party coverage.

Physical Damage Deductibles - The amount an insured is responsible for in the case of a Comprehensive or Collision claim.

Discounts

Multi-V nt applies to the policy when 2 or more vehicles are insured BLUE FORK HOLDINGS

Association Membership Discount - Provides a discount to a driver that is a member of an approved Association/Group.

Safety Course Discount - Provides a discount to the driver who completes a driver training or safety course.

UNDERWRITING TIER DISCLOSURE - NEW YORK

In connection with this application for insurance we may review your credit report or obtain or use a credit based insurance score based on the information contained in the credit report.

This Policy is issued as part of an underwriting tier program as permitted by New York State Insurance Code. The tier placement has been determined based upon objective underwriting criteria. The Policy was assigned to one of ten rate tiers. Tier 1 offers the lowest rate, while Tier 10 offers the highest. Your rate will vary based on the assigned tier. It is possible for you to move into a lower-rated tier upon renewal of your Policy by one or more of the following means:

1. Remain insured IRONVALE
2. Improve your Financial Responsibility rating.

Should you have further questions regarding the underwriting tier program, or if you need further information on how to improve your Financial Responsibility rating, you may contact your authorize or you may contact American Fairmount Automotive, P.O. Box 7215, Canton, OH 13617 or at 1-800-543-2644.

REGULATION NO. 150 COMPLIANCE MULTI-TIER DISCLOSURE - NEW YORK

In connection with this application for insurance we may review your credit report or obtain or use a credit based insurance score based on the information contained in the credit report.

This policy is issued as part of a multi-tier program as permitted by Regulation 150 of New York State Insurance Code. The tier placement has been determined based upon objective underwriting criteria. The policy was assigned to one of six rate tiers. Tier 1 offers the lowest rate, while Tier 6 offers the highest. Your rate will vary based on the assigned tier. **Rates in some tiers may be higher than those of the New York Automobile Insurance Plan (NYAIP).** It is possible for you to move into a lower-rated tier upon renewal of your policy by one or more of the following means:

1. Renew without a chargeable claim in the prior policy term.
2. Improve your financial responsibility rating.

Should you have further questions regarding the multi-tier program, or if you need further information on how to improve your financial responsibility rating, you may contact your agent at P.O. Box 7215, Cincinnati, Ohio 45201 or at

Fairmount Enterprises

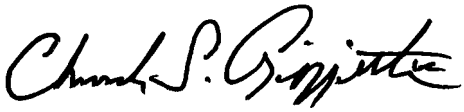
you is policy, or you may contact
at P.O. Box 7215, Cincinnati, Ohio 45201 or at

THE ENDORSEMENT IS ATTACHED TO AND MADE PART OF THE POLICY.
PLEASE READ IT CAREFULLY.

American Modern Fairmount Works

SIGNATURE ENDORSEMENT

Cedarline Cedarline has caused this policy to be signed by the President and Secretary. It is on the Declarations Page by our authorized representative(s) if required.



Charles S. Griffith, Secretary



Andreas Kleiner, President and CEO

THIS ENDORSEMENT IS ATTACHED TO AND MADE PART OF THE POLICY.
PLEASE READ IT CAREFULLY.

SNOWMOBILE POLICY AMENDMENT OF POLICY PROVISIONS - NEW YORK

DEFINITIONS

Paragraph **G.**, **property damage**, is replaced by the following:

G. Property damage means physical injury to, destruction of or loss of use of property.

The following is added to paragraph **I.3.**:

This definition (**I.3.**) does not apply to **PART B - COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE.**

PART A - LIABILITY COVERAGE

A. Paragraph **A.** of the **INSURING AGREEMENT** is replaced by the following:

INSURING AGREEMENT

We will pay damages for **bodily injury**, including damages for care and loss of services, or **property damage** for which any **insured** becomes legally responsible because of an accident involving **your covered snowmobile**. Damages include prejudgment interest awarded against the **insured**. **We** will settle or defend, as **we** consider appropriate, any claim or suit asking for damages which are payable under the terms of the policy. This applies even if the claim or suit is groundless. In addition to **our** limit of liability, **we** will pay all defense costs **we** incur.

B. The following are added to **SUPPLEMENTARY PAYMENTS**:

We will pay on behalf of an **insured**:

- 6.** Expenses incurred by an **insured** for first aid to others at the time of the accident.
- 7.** All costs taxed against an **insured** in any suit **we** defend.

C. Exclusion **A.1.** is replaced by the following:

We do not provide Liability Coverage for any **insured**:

- 1.** Who intentionally causes, or directs another person to cause, **bodily injury** or **property damage**.

D. Exclusions **A.6.** and **A.8.** are deleted.

E. The following Exclusion **A.9.** is added:

We do not provide Liability Coverage for any **insured**:

- 9.** For **bodily injury** to the spouse of that **insured**. However, **we** will provide Liability Coverage for an **insured** if named as a third-party defendant in a legal action commenced by his or her spouse against another party.

F. The **OTHER INSURANCE** provision is replaced by the following:

OTHER INSURANCE

If there is other valid and collectible insurance, **we** will pay only **our** share of the loss. **Our** share is the proportion that **our** limit of liability bears to the total of all applicable limits. However, any insurance **we** provide for a vehicle **you** do not own shall be excess over any other valid and collectible insurance, including physical damage insurance provided under this or any other policy.

PART B - COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE

The following is added to Exclusion **10.**:

However, this Exclusion **(10.)** does not apply to the interests of Loss Payees in **your covered snowmobile**.

The following provisions are added and apply in place of any conflicting policy provision:

MANDATORY INSPECTION

A. **We** have the right to inspect any:

1. Private **snowmobile** that **you** insure or intend to insure for **COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE** under this policy.
2. This right applies only to the extent authorized by Regulation 79 or Section 3411 of the New York Insurance Law.

B. **We** do not provide **COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE** for any additional or replacement **snowmobile** that **you** acquire until after **you**:

1. Notify **us**; and
2. Request coverage for that **snowmobile**.

However, this provision **(B.)** does not apply to a replacement **snowmobile** for the 3-day period beginning on the date that **you** become the owner if:

1. **You** acquire the **snowmobile** during the policy period; and
2. **We** provided **COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE** on the **snowmobile** that **you** replaced for at least 12 months prior to the date of replacement.

For each of the following that falls within the 3-day period, **we** will extend the period 1 day:

1. Saturday;
2. Sunday; or
3. Legal holiday.

SNOWMOBILE REPAIRS

When there is a loss to **your covered snowmobile** covered under Part **B**, **we**:

A. May not:

1. Condition payment on repair;

2. Require that repairs be made by a particular repair shop or concern; and
- B.** Are entitled to the following:
1. A completed "Certification of **Snowmobile** Repairs";
 2. An itemized repair bill prepared by the repairer, if **your covered snowmobile** is repaired; and
 3. An inspection of **your covered snowmobile**, whether or not **you** have it repaired.

RECOVERY OF STOLEN OR ABANDONED SNOWMOBILES

We have the right to take custody of **your covered snowmobile** for safekeeping when:

- A.** It is stolen or abandoned; and
- B.** **We** find out where it is.

WAIVER OF COLLISION DEDUCTIBLE

When there is a loss to **your covered snowmobile** insured for Collision Coverage, no deductible shall apply if the loss was caused by a **collision** with another **snowmobile** insured.

The **PAYMENT OF LOSS** provision of Part **B** is replaced by the following:

PAYMENT OF LOSS

We may pay for loss or the cost to repair or replace the damaged or stolen property. **We** may, at **our** expense, return any stolen or damaged property to:

1. **You**; or
2. The address of the insured.

If **we** return stolen property, **we** will pay for any damage resulting from the loss. **We** may keep it at an agreed or appraised value all or part of:

1. The stolen property; or
2. Property **we** determine to be a total loss or a constructive total loss.

When there is a loss to **your covered snowmobile** under this Part, **we** may not require that repairs be made by a particular repair shop or concern.

If **we** pay for loss in money, **our** payment will include the applicable sales tax for the damaged or stolen property.

PART C - DUTIES AFTER AN ACCIDENT OR LOSS

Part **C** is replaced by the following:

DUTIES AFTER AN ACCIDENT OR LOSS

We have no duty to provide coverage under this policy if the failure to comply with the following duties is prejudicial to **us**, except as provided in Paragraph **E**..

- A.** **We** must be notified as soon as reasonably possible of how, when and where the accident or loss happened. Notice should also include the names and addresses of any injured persons and of any witnesses.

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- B.** A person seeking any coverage must:
- 1.** Cooperate with **us** in the investigation, settlement or defense of any claim or suit.
 - 2.** Send **us** copies of any notices or legal papers received in connection with the accident or loss as soon as reasonably possible.
 - 3.** Submit, as often as **we** reasonably require:
 - a.** To physical exams by physicians **we** select. **We** will pay for these exams.
 - b.** To examination under oath and subscribe the same.
 - 4.** Authorize **us** to obtain:
 - a.** Medical records; and
 - b.** Other pertinent records.
 - 5.** Submit a proof of loss when required by **us**.
- C.** A person seeking Uninsured Motorists Coverage must also:
- 1.** Notify the police as soon as reasonably possible if a hit-and-run driver is involved.
 - 2.** Send **us** copies of the legal papers as soon as reasonably possible if a suit is brought.
- D.** A person seeking **COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE** must also:
- 1.** Take reasonable steps after loss to protect **your covered snowmobile** and its equipment from further loss. **We** will pay reasonable expenses incurred to do this.
 - 2.** Promptly notify the police if **your covered snowmobile** is stolen.
 - 3.** Permit **us** to inspect and appraise the damaged property before its repair or disposal.
- E.** Failure to give notice to **us** as required under this policy within the time specified shall not invalidate any claim made by the **insured**, injured person or any other claimant, unless the failure to provide timely notice has prejudiced **us**. However, no claim made by the **insured**, injured person or other claimant will be invalidated if it shall be shown not to have been reasonably possible to give such timely notice and that notice was given as soon as was reasonably possible thereafter.

PART D - GENERAL PROVISIONS

The following is added to the **FRAUD** provision:

However, **we** will provide coverage to such **insured** for damages sustained by any person who has not made fraudulent statements or engaged in fraudulent conduct if such damages result from an accident which is otherwise covered under this policy.

The **LEGAL ACTION AGAINST US** provision is replaced by the following:

- A.** No legal action may be brought against **us** until there has been full compliance with all the terms of this policy. In addition, under Part **A**, no legal action may be brought against **us** until:

1. **We**, by **insured** HARBOR POINT CONTRACTING e **insured** and the claimant, agree that the
 2. The amount of that obligation has been finally determined by judgment after trial.
- B. No person or organization has any right under this policy to bring **us** into any action to determine the liability of an **insured**.

The following is added to the **LEGAL ACTION AGAINST US** provision:

- C. With respect to **bodily injury** claims, if **we** deny coverage or do not admit liability because an **insured**, the injured person, someone acting for the injured person or other claimant fails to give **us** notice as soon as reasonably possible, then the injured person, someone acting for the injured person or other claimant may bring an action against **us**, provided the sole question is whether the denial of coverage or non-admission of liability is based on the failure to provide notice as soon as reasonably possible.

However, the injured person, someone acting for the injured person or other claimant may not bring an action if within 60 days after **we** deny coverage or do not admit liability, **we** or an **insured**:

1. Brings an action to declare the rights of the parties under the policy; and
 2. Names the injured person, someone acting for the injured person or other claimant as a party to the action.
- D. If **we** fail to pay damages for **bodily injury** or **property damage** for which the **insured** becomes legally responsible because of an accident within 30 days from the date notice of entry of judgment is served on the **insured** or the **insured's** attorney and **us**, then an action may be maintained against **us** for the amount of judgment, up to the limit of liability shown in the Declarations for which coverage is provided under this policy.

However, paragraph **insured** CEDARLINE SERVICE ply during a stay or limited stay of execution against the **insured**

The **TERMINATION** provision is replaced by the following:

- A. **Cancellation.** This policy may be cancelled during the policy period as follows:
1. The named insured shown in the Declarations may cancel the entire policy by:
 - a. Returning this policy to **us**; or
 - b. Giving **us** advance written notice of the date cancellation is to take effect.
 2. **We** may cancel the entire policy by mailing to the named insured shown in the Declarations at the address shown in this policy:
 - a. At least 15 days' notice if cancellation is for nonpayment of premium; or
 - b. At least 20 days' notice in all other cases.

If **we** cancel during the first 60 days this policy is in effect, **our** notice of cancellation must state or include the reason for cancellation.
 3. After this policy is in effect for 60 days, or if this is a renewal or continuation policy, **we** will (subject to the laws of New York) cancel only:
 - a. For nonpayment of premium; or

b. If **your** driver's license or that of:

(1) Any driver who lives with **you**; or

(2) Any driver who customarily uses **your covered snowmobile**;

Has been suspended or revoked. This must have occurred:

(1) During the policy period; or

(2) Since the last anniversary of the original effective date if the policy period is other than one year.

This provision does not apply to one or more administrative suspensions from the same incident which terminate prior to the effective date of cancellation.

c. For discovery of fraud or material misrepresentation in:

(1) Obtaining the policy; or

(2) Presenting a claim.

If one of the reasons for cancellation listed in this paragraph **3.** exists, **we** may cancel the entire policy, even if the reason for cancellation pertains only to a new coverage or endorsement initially effective subsequent to the original issuance of this policy.

4. **Our** right to cancel applies to each and every;

a. Coverage; or

b. Limit;

afforded under this policy.

5. If **we** have the right to cancel this policy, **we** may instead condition continuation upon:

a. Change of limits; or

b. Elimination of any coverage;

not required by law. This applies only if **we** mail 20 days notice to the named insured shown in the Declarations at the address shown in this policy.

Keith Thorne

1. If **we** decide not to renew or continue this policy, **we** will (subject to the insurance laws of New York) mail notice to the named insured shown in the Declarations. However, **our** right not to renew or continue this policy will be subject to the requirements of Section 3425 of the insurance law of New York.

2. If **we** have the right not to renew or continue this policy, **we** may instead condition renewal upon;

a. Change of limits; or

b. Elimination of any coverage;

not required by law. This applies only if **we** mail notice to the named insured shown in the Declarations.

3. The notice required by paragraphs **1.** and **2.** of this section must:
 - a. Be mailed to the address shown in this policy at least 45 but not more than 60 days, before the end of the policy period; and
 - b. State or include the reason for **our** action.
4. **We** are not required to mail notice of nonrenewal to the named insured shown in the Declarations if **we** are given written notice that this policy:
 - a. Has been replaced; or
 - b. Is no longer wanted.

This written notice may be given to **us** by:

- a. **You**;
- b. Another insurer; or
- c. **Your** representative.

D. Other Termination Provisions

1. A United States Postal Service certificate of mailing of any notice shall be sufficient proof of notice.
2. If this policy is cancelled, **you** may be entitled to a premium refund. If so, **we** will send **you** the refund. The premium refund, if any, will be computed according to **our** manuals. However, making or offering to make the refund is not a condition of cancellation.
3. The effective date of cancellation stated in the notice shall become the end of the policy period.

The following is added to the **TWO OR MORE POLICIES** provision:

TWO OR MORE POLICIES

If **we** issued to **you** any other policy (or policies) insuring the same risk of loss as this policy, the policy (or policies) with the lower limit(s) does/do not apply if the loss is covered on a primary, excess, contribution, or other basis by the policy with the highest limit. **Our** maximum liability, therefore, will not exceed the highest limit found in any one of the policies. If the policies issued by **us** insuring the same risk all have the same limit of liability, one will apply to the loss and the other(s) will not apply to the loss. This provision does not apply to **PART A - LIABILITY COVERAGE**.

The following provision is added:

NOTICE

Notice to **our** authorized agent shall be deemed notice to **us**. In addition, any written notice given by or on behalf of any claimant to **our** authorized agent, containing particulars sufficient to identify **you**, shall be deemed notice to **us**.

THIS ENDORSEMENT IS ATTACHED TO AND MADE PART OF THE POLICY.
PLEASE READ IT CAREFULLY.

**SNOWMOBILE POLICY
SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS
ENDORSEMENT - NEW YORK**

We, the company, agree with **you**, as the named **insured**, in return for payment of the premium for this coverage, to provide Supplementary Uninsured/Underinsured Motorists (SUM) coverage, subject to the following terms and conditions.

INSURING AGREEMENTS

Definitions

For purposes of this SUM endorsement, the following terms have the following meanings:

A. Insured. The unqualified term **insured** means:

- 1. You**, as the named **insured** and, while residents of the same household, **your** spouse and the relatives of either **you** or **your** spouse;
- 2. Any other person while occupying:**
 - a. A snowmobile insured** for SUM under this policy; or
 - b. Any other snowmobile** while being operated by **you** or **your** spouse; and
- 3. Any person**, with respect to damages such person is entitled to recover, because of **bodily injury** to which this coverage applies sustained by an **insured** under paragraph **1.** or **2.** above.

B. Bodily injury. The term **bodily injury** means bodily harm, including sickness, disease or death resulting therefrom.

C. Uninsured Motor Vehicle. The term **uninsured motor vehicle** means a motor vehicle that, through its ownership, maintenance or use, results in **bodily injury** to an **insured**, and for which:

- 1. No bodily injury** liability insurance policy or bond applies to such motor vehicle (including a motor vehicle that was stolen, operated without the owner's permission, or unregistered) at the time of the accident; or
- 2. The owner and operator cannot be identified** (including a hit-and-run motor vehicle), and which causes **bodily injury** to an **insured** by physical contact with:
 - a. A snowmobile** occupied by the **insured**;
 - b. The insured** FAIRMOUNT MOTORWORKS
 - c. A motor vehicle** occupied by the **insured** at the time of the accident, if the **uninsured motor vehicle** is a snowmobile;

provided that:

- a. The insured** or someone on the **insured's** behalf shall have reported the accident within 24 hours or as soon as reasonably possible to a police, peace or judicial officer or to the Commissioner of Motor Vehicles and shall have filed with **us** a statement under oath that the **insured** or the **insured's** legal representative has a cause or causes of action arising out of such accident for damages against a person or persons whose identity is unascertainable, and

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setting forth the facts in support thereof; and

- b. At **our** request, the **insured** or the **insured's** legal representative makes available for inspection the motor vehicle the **insured** was **occupying** at the time of the accident; or
- 3. There is a **bodily injury** liability insurance coverage or bond applicable to such motor vehicle at the time of the accident, but:
 - a. The amount of such insurance coverage or bond is less than the third-party **bodily injury** liability limit of this policy; or
 - b. The amount of such insurance coverage or bond has been reduced, by payments to other persons injured in the accident, to an amount less than the third-party **bodily injury** liability limit of this policy; or
 - c. The insurer writing such insurance coverage or bond denies coverage, or such insurer is or becomes insolvent.

The term **uninsured motor vehicle** does not include a motor vehicle that is:

- 1. **Insured** RIDGEWAY MOTORWORKS
 - 2. Owned by **you**, as the **named insured**, or **your** spouse residing in **your** household;
 - 3. Self-**insured** within the meaning of the financial responsibility law of the **state** in which the motor vehicle is registered, or any similar **state** or federal law, to the extent that the required amount of such coverage is equal to, or greater than, the third party **bodily injury** liability limits of this policy;
 - 4. Owned by the United States of America, Canada, a **state**, a political subdivision of any such government, or an agency of any of the foregoing;
 - 5. A land motor vehicle or trailer, while located for use as a residence or premises and not as a vehicle, or while operated on rails or crawler-treads (other than a **snowmobile**); or
 - 6. A farm type vehicle or equipment designed for use principally off public roads, except while actually upon public roads.
- D. **Occupying.** The term **occupying** means in, upon, entering into, or exiting from a motor vehicle.
- E. **State.** The term **state** includes the District of Columbia, a territory or possession of the United States, and a province of Canada.

Damages for **Bodily Injury** caused by **Uninsured Motor Vehicles**

We will pay all sums that the **insured** or the **insured's** legal representative shall be legally entitled to recover as damages from the owner or operator of an **uninsured motor vehicle** because of **bodily injury** sustained by the **insured**, caused by an accident arising out of the ownership, maintenance or use, subject to the Exclusions, Conditions, Limits and other provisions set forth in this SUM endorsement.

SUM COVERAGE PERIOD AND TERRITORY

This SUM coverage applies only to accidents that occur:

- A. During the policy period shown in the Declarations; and
- B. In the United States, its territories or possessions, or Canada.

EXCLUSIONS

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This SUM coverage does not apply to:

- A. **Bodily injury** to an **insured**, including care or loss of services recoverable by an **insured**, if such **insured**, such **insured's** legal representatives, or any person entitled to payment under this coverage, without **our** written consent, settles any lawsuit against any person or organization that may be legally liable for such injury, care or loss of services, but this provision shall be subject to Condition **J**.
- B. **Bodily injury** to an **insured**, unless that **insured** is:
 - 1. **Occupying a snowmobile**;
 - 2. Struck by a **snowmobile**; or
 - 3. **Occupying a land motor vehicle** that is struck by a **snowmobile**.
- C. **Bodily injury** to an **insured** incurred while **occupying a snowmobile** owned by that **insured**, if such **snowmobile** is not **insured** for SUM coverage by the policy under which a claim is made, or is not a newly acquired or replacement **snowmobile** covered under the terms of this policy.
- D. Non-economic loss resulting from **bodily injury** to an **insured** arising from an accident in New York State, unless the **insured** has sustained serious injury as defined in Section 5102(d) of the New York Insurance Law.

CONDITIONS

- A. Policy Provisions. None of the Insuring Agreements, Exclusions or Conditions of the policy shall apply to this SUM coverage except **PART C - DUTIES AFTER AN ACCIDENT OR LOSS**; and **PART D - GENERAL PROVISIONS, FRAUD and TERMINATION**; if applicable.
- B. Notice and Proof of Claim. As soon as practicable, the **insured** or other person making claim shall give **us** written notice of claim under this SUM coverage.

As soon as practicable after **our** written request, the **insured** or other person making claim shall give **us** written proof of claim, under oath if required, including full particulars of injuries, treatment, and other details **we** need to

NORTHVALE FABRICATION

The **insured** and every other person making claim hereunder shall, as may reasonably be required, submit to examinations under oath by any person **we** name and subscribe the same. Proof of claim shall be made upon forms **we** furnish unless **we** fail to furnish such forms within 15 days after receiving notice of claim.

- C. Medical Reports. The **insured** shall submit to physical examinations by physicians **we** select when and as often as **we** may reasonably require. The **insured**, or in the event of the **insured's** incapacity, such **insured's** legal representative (or in the event of such **insured's** death, the **insured's** legal representative or the person or persons entitled to sue therefor), shall upon each request from **us** authorize **us** to obtain relevant medical reports and copies of relevant records.
- D. Notice of Legal Action. If the **insured** or such **insured's** legal representative brings any lawsuit against any person or organization legally responsible for the use of a motor vehicle involved in the accident, a copy of the summons and complaint or other process served **insured** CEARLINE LOGISTICS shall be forwarded immediately to **us** by the **insured**.
- E. SUM Limits and Maximum Payments. The SUM limits payable under this endorsement shall be determined as follows:
 - 1. If an accident results in **bodily injury** excluding death to one or more persons, then

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we will provide the SUM limits stated in the Declarations;

2. If an accident results in the death of one or more persons, then we will provide the greater of the SUM limits stated in the Declarations or \$50,000 for such **bodily injury** resulting in death sustained by one person as the result of any one accident and, subject to this per person limit, \$100,000 for such **bodily injury** resulting in death sustained by two or more persons as the result of any one accident.
 3. If an accident results in both **bodily injury** to one or more persons and the death of one or more persons, then we will provide the greater of the SUM limits stated in the Declarations or the limits required by the mandatory uninsured motorists (UM) coverage as follows:
 - a. \$25,000 per injured person and, subject to this per person limit;
 - b. \$50,000 to two or more persons injured as the result of any one accident; and
 - c. \$50,000 per person for **bodily injury** resulting in death and, subject to this per person limit;
 - d. \$100,000 to two or more persons for **bodily injury** resulting in death as the result of any one accident.
 4. Regardless of the number of **insureds**, **our** maximum payment under this SUM endorsement shall be the difference between:
 - a. The SUM limits; and
 - b. NORTHVALE CONTRACTING

persons that may be legally liable for the **bodily injury** sustained by the **insured**.
 5. The SUM limit shown on the Declarations for "Each Person" is the amount of coverage for all damages due to **bodily injury to** one person. The SUM limit shown under "Each Accident" is, subject to the limit for each person, the total amount of coverage for all damages due to **bodily injury** to two or more persons in the same accident.
- F. Non-Stacking. Regardless of the number of vehicles involved, persons covered, claims made, vehicles or premiums shown in this policy, or premium paid, the limits, whether for uninsured motorists coverage or supplementary uninsured/underinsured motorists coverage, shall never be added together or combined for two or more motor vehicles to determine the extent of insurance coverage available to an **insured** who was injured in the same accident.
- G. Priority of Coverage. If an **insured** is entitled to uninsured motorists coverage or supplementary uninsured/underinsured motorists coverage under more than one policy, the maximum amount such **insured** may recover shall not exceed the highest limit of such coverage for any one vehicle under any one policy, and the following order or priority shall apply:
1. A policy covering a motor vehicle occupied by the injured person at the time of the accident;
 2. A policy covering a motor vehicle not involved in the accident under which the injured person is a named **insured**; and
 3. A policy covering a motor vehicle not involved in the accident under which the injured person is an **insured** other than a named **insured**.

Coverage available under a lower priority policy applies only to the extent that it exceeds the coverage of a higher priority policy.

- H. Exhaustion Required. Except as provided in Condition J., **we** will pay under this SUM coverage only after the limits of liability have been used up under all motor vehicle **bodily injury** liability insurance policies or bonds applicable at the time of the accident in regard to any one person who may be legally liable for the **bodily injury** sustained by the **insured**.
- I. Release or Advance. In accidents involving the **insured** and one or more negligent parties, if such **insured** settles with any such party for the available limit of the motor vehicle **bodily injury** liability coverage of such party, release may be executed with such party after thirty calendar days from our receipt of your written notice to **us**, unless within this time period **we** agree to advance such settlement amounts to the **insured** in return for the cooperation of the **insured** in **our** lawsuit on behalf of the **insured**.

We shall have a right to the proceeds of any such lawsuit equal to the amount advanced under this SUM coverage. Any excess

NORTHVALE WORKS

y negligent party, without **our** written

STONEPATH FABRICATION

- J. Non-Duplication. This SUM coverage shall not duplicate any of the following:
1. Benefits payable under workers' compensation or other similar laws;
 2. Non-occupational disability benefits under New York Workers' Compensation Law article nine or other similar law;
 3. Any amounts recovered or recoverable pursuant to New York Insurance Law article fifty-one or any similar motor vehicle insurance payable without regard to fault;
 4. Any valid or collectible motor vehicle medical payments insurance; or
 5. Any amounts recovered as **bodily injury** damages from sources other than motor vehicle **bodily injury** liability insurance policies or bonds.
- K. Arbitration. If any **insured** makes a claim under this SUM coverage and **we** do not agree that such **insured** is legally entitled to recover damages from the owner or operator of an **uninsured motor vehicle** because of **bodily injury** sustained by the **insured**, or do not agree as to the amount of payment that may be owing under this SUM coverage, then, at the option and upon written demand of such **insured**, the matter or matters upon which such **insured** and **we** do not agree shall be settled by arbitration, administered by the American Arbitration Association, pursuant to procedures approved by the Superintendent of Financial Services for this purpose.

If the maximum amount of SUM coverage provided by this endorsement equals the amount of coverage required to be provided by New York Insurance Law section 3420(f)(1) and New York Vehicle and Traffic Law Article 6 or 8, then such disagreement shall be settled by such arbitration procedures upon written demand of either the **insured** WINSLOW

Judgment upon the award rendered by the arbitrator may be entered in any court having jurisdiction thereof, and any such **insured** and **we** each agree to be bound by any award made by the arbitrator as to this SUM coverage. For purposes of this Condition, the term **insured** includes any person authorized to act on behalf of the **insured**.

- L. Subrogation. If **we** make a payment under this SUM coverage, then **we** have the right to recover the amount of this payment from any person legally responsible for the **bodily injury** or loss of the person to whom, or for whose benefit, such payment was made to the extent of the payment. The **insured** or any person acting on behalf of the **insured** must do whatever is necessary to transfer this right or recovery to **us**. Except as permitted by Condition J., such person shall do nothing to prejudice this right.
- M. Payment of Loss by Company. **We** shall pay any amount due under this SUM coverage

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to the **insured** or, at **our** option, to a person authorized by law to receive such payment or to a person legally entitled to recover the damages which the payment represents.

- N.** Action Against Company. No lawsuit shall lie against **us** unless the **insured** or the **insured's** legal representative has first fully complied with all the terms of this SUM coverage.
- O.** Survivor Rights. If **you** or **your** spouse, if a resident of the same household, dies, this SUM coverage shall cover:
 - 1.** The survivor as named **insured**;
 - 2.** The decedent's legal representative as named **insured**, but only while acting within the scope of such representative's duties as such; and
 - 3.** Any relative who was an **insured** at the time of such death.

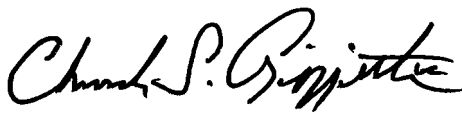
THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

POLICY EXECUTION ENDORSEMENT

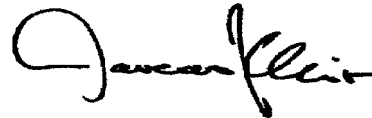
Cedarline

has caused this policy to be signed by the President and Secretary. It is on the Declarations Page by our authorized representative(s) if required.

American Modern Fairmount Works



Secretary



President

